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Brazil: Background and U.S. Relations

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SUMMARY

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Brazil: Background and U.S. Relations

Brazil has the potential to play an influential role in international affairs as the 5th-largest territory, 7th-most populous country, and 11th-largest economy in the world. Given Brazil's potential strategic importance, Members of Congress sometimes have explored ways to bolster U.S.-Brazil cooperation and Brazil periodically has been a focal point of U.S. policy in Latin America. The United States and Brazil historically have maintained robust political and economic ties, including regular high-level engagement on security and other matters and goods and services trade valued at nearly $135 billion in 2025. Nevertheless, differing policy approaches and sometimes divergent national interests appear to have inhibited the development of a closer partnership.

Brazil's Political Situation

On October 25, 2026, President Luiz Inácio Lula da Silva (Lula; 2003-2010, 2023-present) of the left-of-center Workers' Party narrowly won a fourth term. He defeated Senator Flávio Bolsonaro of the right-wing Liberal Party in a second-round runoff election, 51.8% to 48.2%. That is roughly double the margin by which Lula defeated Flávio's father, then-incumbent President Jair Bolsonaro (2019-2023), in the 2022 presidential runoff. Jair Bolsonaro is currently serving a 27-year prison sentence under house arrest for attempting a coup d'état to overturn his election loss. Senator Bolsonaro initially stated that he intended to challenge the results of the 2026 runoff, which have been recognized by an Organization of American States election observation mission, many foreign governments, and most of Brazil's political leadership, including Bolsonaro's party. Days later, on October 28, 2026, Senator Bolsonaro entered the United States, fleeing ongoing criminal investigations in Brazil and claiming political persecution.

President Lula is to be inaugurated to his fourth four-year term on January 5, 2027. He has largely pledged continuity with his current administration, which has focused on increasing Brazilians' upward social mobility while addressing environmental destruction in the Brazilian Amazon and expanding Brazil's international influence. Lula has advanced portions of his domestic agenda—such as stricter environmental enforcement—through executive action and secured congressional approval for some of his proposed socioeconomic policies. The center-right Brazilian congress has blocked some of Lula's initiatives and appointments, however, and advanced some legislation opposed by the president. Both houses of the Brazilian congress are to shift further to the right during Lula's fourth term, which could result in increased inter-branch conflict.

U.S.-Brazil Relations

Over the past decade, U.S.-Brazil relations have waxed and waned, depending, in part, on the relative ideological alignment between the administrations in power. Bilateral relations have been strained since 2025. The second Trump Administration imposed tariffs on goods imports from Brazil and sanctions on some Brazilian supreme court justices in response to the criminal prosecution of former President Bolsonaro and the Brazilian judiciary's approach to regulating social media, which the Administration characterized as political persecution and censorship. The Lula administration has condemned these and other U.S. actions—including the designation of two Brazilian criminal groups as foreign terrorist organizations—as politically motivated attacks on Brazilian sovereignty. As of October 28, 2026, the Trump Administration had not recognized the results of Brazil's 2026 presidential election.

Congressional Action

Some Members of Congress have monitored developments in Brazil and sought to influence the trajectory of U.S.-Brazilian relations. Environmental conservation has been a major area of focus for some Members. In the National Security, Department of State, and Related Programs Appropriations Act, 2026 (P.L. 119-75, Division F), Congress designated $38.0 million for environmental programs across the Amazon region. Some Members also have expressed concerns about Brazilian judicial orders regulating social media platforms and have expressed support for the Trump Administration's sanctions against Brazilian supreme court justices who allegedly infringed on freedom of expression. Some other Members have criticized the Trump Administration for purportedly using U.S. sanctions and trade policy to undermine Brazil's democracy and rule of law. Congress may assess whether—and, if so, how—to continue shaping U.S.-Brazil relations on these and other issues as it considers FY2027 appropriations and exercises its other legislative and oversight prerogatives.

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Introduction

Brazil has the potential to play an influential role in international affairs as the 5th-largest territory, 7th-most populous country, and the 11th-largest economy in the world; it is also a top global food and energy producer and home to the majority of the Amazon forest (see **Figure 1** for a map of Brazil).[1] Brazil has often forged coalitions with other large, developing countries to push for changes to multilateral institutions and to ensure that global agreements on issues ranging from trade to climate change adequately protect developing countries' interests. At times, Brazil also has sought to play a greater role in promoting peace and stability, contributing to UN peacekeeping missions and attempting to mediate conflicts. Although some domestic challenges have led Brazil to turn inward and appear to have weakened its standing as a global leader over the past decade, the country continues to exert some influence on international policy issues that affect the United States.

Brazil at a Glance

Population: 214.2 million (2026 est.)

Official Language: Portuguese

Race/Ethnicity: mixed race (*pardo*)—45.3%, White (*branco*)—43.5%, Black (*preto*)—10.2%, Indigenous (*Indígena*)—0.6%, Asian (*amarelo*)—0.4%, (Self-identification, 2022 census)

Religion: Catholic—56.8%, Evangelical—26.9%, none—9.3%, other—6.9% (Self-identification, 2022 census)

Land Area: 3.3 million square miles (slightly larger than the 48 contiguous U.S. states and the District of Columbia)

Gross Domestic Product (GDP)/GDP per Capita: $2.3 trillion/$10,683 (2025 est.)

Sectoral Components of GDP: Services—71.6%, industry—20.5%, agriculture—8.9% (2025 est.)

Top Goods Exports: oil, soybeans, iron ore, beef, and coffee (2025)

Top Goods Export Partners: China (28.7%), European Union (14.3%), United States (10.8%), Argentina (5.2%)

Life Expectancy at Birth: 76.6 years (2024)

Poverty Rate: 23.1% (2024)

Sources: Population, race/ethnicity, religion, land area, life expectancy, and poverty statistics from the *Instituto Brasileiro de Geografia e Estatística*; GDP estimates from the International Monetary Fund; sectoral GDP estimates from the Economist Intelligence Unit; export data from Trade Data Monitor.

Some analysts have characterized Brazil as a global "swing state" with the potential to affect the trajectory of the international order.[2] Given Brazil's potential strategic importance, some of those analysts argue that the United States should more actively engage the country and devote increased attention and resources to forging a close partnership. Several previous efforts to establish closer ties have left policymakers in both countries frustrated, however, as differing policy approaches and sometimes divergent national interests have inhibited cooperation.[3] Some analysts argue that Brazil is unlikely to ever closely align with the United States but the two countries may be able to cooperate on particular issues at particular times.[4]

Congress may monitor developments in Brazil and the country's approach to policy issues of importance to the United States. Congress also may assess whether and, if so, how to influence U.S.-Brazilian relations as it oversees U.S. defense and trade policies, considers appropriations for security and environmental assistance, and debates sanctions and other potential legislation.

[1] World Bank, "DataBank," accessed August 24, 2026.

[2] Daniel M. Kliman and Richard Fontaine, *Global Swing States: Brazil, India, Indonesia, Turkey and the Future of International Order*, German Marshall Fund of the United States and Center for a New American Security, November 2012; and Jared Cohen, *The Rise of Geopolitical Swing States*, Goldman Sachs, May 15, 2023.

[3] See, for example, Mônica Hirst, *The United States and Brazil: A Long Road of Unmet Expectations* (New York: Routledge, 2005).

[4] See, for example, Matias Spektor and Margaret Myers, remarks during a Carnegie Endowment for International Peace event on "Pivotal States: A New Era for U.S.-Brazil Relations?" August 17, 2023.

Figure 1. Map of Brazil



Source: Map Resources. Adapted by CRS.

Brazil's Political and Economic Situation

Background

Brazil declared independence from Portugal in 1822, initially establishing a constitutional monarchy and retaining a slave-based, plantation economy. Approximately 5 million enslaved Africans were forcibly transported to Brazil between the mid-1500s and 1888, when Brazil abolished slavery, accounting for about 45% of all enslaved Africans brought to the Americas.[5] Brazil became a republic in 1889, but economic and political power remained concentrated in the

[5] Keila Grinberg, "Slavery in Brazil," *Oxford Bibliographies*, March 16, 2023.

hands of large rural landowners and most Brazilians remained outside the political system. During the 1910s and 1920s, for example, roughly 2%-3% of Brazil's population voted.[6] The authoritarian government of Getúlio Vargas (1930-1945) began to incorporate the working classes into politics but exerted strict control over labor as part of its broader push to centralize power in the federal government. Vargas also began to implement a state-led development model, which endured for much of the 20th century as successive governments supported the expansion of Brazilian industry.

Brazil experienced two decades of multiparty democracy from 1945 to 1964 but struggled with political and economic instability that ultimately led the military to seize power. A 1964 military coup ushered in two decades of authoritarian rule. The U.S. government dispatched military assets to potentially aid the pro-coup forces and expressed support for the post-coup government.[7] Brazilian security forces killed at least 434 dissidents and detained and tortured an estimated 30,000-50,000 others during the dictatorship.[8] The military government allowed the judiciary and congress to nominally function during its tenure but stifled representative democracy and civic action, carefully preserving its influence during Brazil's protracted democratic transition back to civilian democratic governance.[9]

Brazil restored civilian rule in 1985, and a national constituent assembly, elected in 1986, promulgated a new constitution in 1988. The constitution divides power among three branches of government: an executive branch led by a president with extensive policymaking authority; a legislative branch consisting of the 513-member Chamber of Deputies and the 81-member Senate; and an independent judicial branch charged with interpreting and applying the numerous political, economic, and social rights enshrined in the constitution.[10] The 1988 constitution also established universal suffrage, eliminating literacy requirements that had disenfranchised more than half of the population during the previous democratic era and disproportionately affected Afro-Brazilians.[11] Under Brazil's federal structure, the national government shares authority with 26 states, a federal district that includes the capital city of Brasília, and 5,568 municipalities. Organizations that attempt to track respect for democracy globally generally recognize Brazil's democracy for its competitive elections and political pluralism but identify some shortcomings, including endemic corruption and high levels of political polarization and violence.[12]

[6] *Brazil: A Country Study*, ed. Rex A. Hudson, 5th ed. (Library of Congress, Federal Research Division, 1998), p. 56.

[7] *Foreign Relations of the United States*, 1964–1968, Volume XXXI, South and Central America; Mexico, eds. David C. Geyer and David H. Herschler (Washington: GPO, 2004), Documents 198 and 212, at https://history.state.gov/historicaldocuments/frus1964-68v31/ch5.

[8] At least 8,350 Indigenous people in Brazil also were killed during the dictatorship, either directly by government agents or indirectly due to government policies. Ministério Público Federal, Procuradoria Federal dos Direitos do Cidadão, "PFDC Contesta Recomendação de Festejos ao Golpe de 64," press release, March 26, 2019; and *Relatório da Comissão Nacional da Verdade*, December 10, 2014, at http://cnv.memoriasreveladas.gov.br/.

[9] For background on the military government, see Thomas E. Skidmore et al., *The Politics of Military Rule in Brazil, 1964-1985* (New York: Oxford University Press, 1988).

[10] The text of the Constitution of the Federative Republic of Brazil is available in English at https://www.stf.jus.br/arquivo/cms/legislacaoConstituicao/anexo/brazil_federal_constitution.pdf.

[11] Ricardo Westin, "Por 100 Anos, Analfabeto Foi Proibido de Votar no Brasil," Senado Notícias, November 4, 2016; and José Antonio Correa Francisco, "Como a População Negra Foi Excluída do Processo Eleitoral," *CartaCapital*, February 18, 2022.

[12] See, for example, Freedom House, *Freedom in the World 2026: Brazil*, https://freedomhouse.org/country/brazil/freedom-world/2026; and Economist Intelligence Unit (EIU), *Democracy Index 2025*, April 8, 2026.

Lula Administration (2023-Present)

Brazilian President Luiz Inácio Lula da Silva (Lula) of the left-of-center Workers' Party (*Partido dos Trabalhadores*, or PT) was inaugurated to a third four-year term on January 1, 2023, marking a significant political comeback. Lula originally rose to prominence during the 1970s as the leader of Brazil's metal workers union. He subsequently helped found the PT amid the push to restore democracy in Brazil and led the party in three unsuccessful presidential bids before being elected in 2002. Lula presided over a period of sustained economic growth and improving living conditions in Brazil during his first two terms (2003-2010), and left office with an 87% approval rating.[13] He was convicted on corruption charges in 2017, however, and imprisoned for 19 months before Brazil's Federal Supreme Court (*Supremo Tribunal Federal*, or STF) annulled those convictions on procedural grounds and ruled that the presiding judge had acted with bias.[14] Lula then narrowly defeated incumbent President Jair Bolsonaro (2019-2022), a right-wing populist affiliated with the Liberal Party (*Partido Liberal*, or PL), 50.9% to 49.1%, in an October 2022 presidential runoff election.[15]

During his third term, Lula has focused on raising Brazilians' living standards, addressing environmental concerns, and expanding Brazil's international influence. He has implemented portions of his agenda through executive action, such as expanding land rights for Indigenous groups and *Quilombolas* (inhabitants of communities founded by individuals who escaped or were freed from slavery), strengthening environmental conservation efforts, and engaging in presidential diplomacy. (For further discussion, see "Approach to the Amazon Forest" and "Brazil's Foreign Policy.")

Lula has sought to advance other priorities through the fragmented Brazilian congress, in which 17 political parties or party federations have representation.[16] Although legislators aligned with Lula held approximately 27% of seats in the Chamber of Deputies and 19% of seats in the Senate at the start of Brazil's 57th legislature (2023-2027), Lula forged working majorities with the conditional support of a bloc of centrist and center-right parties that typically work with whatever administration is in power to increase the parties' influence over government policy and staffing.[17] Among other Lula administration proposals, the Brazilian congress has approved minimum wage increases, an expansion of a conditional cash transfer program for low-income Brazilians, a progressive income tax reform, and a labor reform to reduce Brazil's work week from six days to five days (and from 44 to 40 hours).

Lula's working legislative majorities have not always held. In April 2026, for example, the Brazilian Senate rejected Lula's nominee for a vacant seat on the STF—reportedly the first such rejection since 1894.[18] The Brazilian congress also has overridden some presidential vetoes. In April 2026, for example, the congress overrode Lula's veto to enact legislation intended to reduce prison sentences for some individuals convicted of crimes related to January 8, 2023, riots, in which Bolsonaro supporters stormed Brazil's congress, supreme court, and presidential palace

[13] Reuters, "Brazil's Lula to Leave with Record-High Popularity," December 16, 2010.

[14] See, for example, "Por 7 a 4, Supremo Confirma Decisão que Declarou Moro Parcial em Caso de Lula," *Folha de São Paulo*, June 23, 2021.

[15] Tribunal Superior Eleitoral (TSE), "Eleição Geral Ordinária 2022, 2º Turno," October 31, 2022.

[16] Câmara dos Deputados, "Lideranças e Bancadas Partidárias," accessed October 7, 2026.

[17] Antônio Augusto de Queiroz, "Base do Governo Lula no Congresso," Boletim do Departamento Intersindical de Assessoria Parlamentar, February 8, 2023.

[18] Agência Senado, "Indicação de Jorge Messias ao STF é Rejeitada pelo Senado," April 29, 2026.

while calling on the military to oust the newly inaugurated Lula administration.[19] The legislation could benefit former President Bolsonaro, who was convicted of an attempted coup and sentenced to 27 years in prison in September 2025.[20] According to Brazilian authorities, in addition to facilitating the January 8, 2023, riots, Bolsonaro and his allies engaged in activities to discredit the 2022 elections, blocked opposition voters from getting to the polls, drafted decrees to overturn the election results, and pressured members of the armed forces to support a coup.[21] Brazil's STF has temporarily suspended the sentence reduction legislation while it undergoes judicial review.[22]

Socioeconomic Conditions

During his 2022 campaign, President Lula pledged to restore the upward social mobility that characterized his first two terms in office, when Brazil's gross domestic product (GDP) expanded by an average of 4.1% per year, driven in part by a surge in international demand (particularly from the People's Republic of China [PRC, or China]) for Brazilian commodities such as oil, iron, and soybeans. Brazil's GDP growth, which averaged less than 1.0% between 2011 and 2022, accelerated to an average of 3.0% between 2023 and 2025.[23] This acceleration was driven, in part, by rising household consumption tied to improving labor market conditions, an expansion of credit, and government income transfer programs.[24] Between the second quarter of 2022 and the second quarter of 2026, Brazil's unemployment rate fell from 9.3% to 5.4%, and real average monthly incomes increased by about 19%.[25] Likewise, Brazil's poverty rate fell from 31.6% in 2022 to 23.1% in 2024; the poverty rates of Black and mixed race Brazilians remained higher than the national average, at 25.8% and 29.8%, respectively.[26] Despite these socioeconomic improvements, a majority of Brazilians surveyed in September 2026 reported that their household incomes either had not risen or had not kept up with the cost of living over the past year.[27]

The Economist Intelligence Unit projects 1.8% GDP growth for Brazil in 2026.[28] This slowdown is due, in part, to the U.S.-Israel conflict with Iran, which has contributed to higher inflation and interest rates, dampening domestic consumption. Consumer prices in Brazil increased by 4.6% between October 2025 and September 2026, with gasoline and diesel prices increasing by 5.6% and 14.4%, respectively.[29] The Lula administration has implemented a mix of subsidies and tax-

[19] "Lei Nº 15.402, De 08 de Maio de 2026," *Diário Oficial da União*, May 8, 2026.

[20] Bolsonaro reported to prison in November 2025 but has been serving his sentence on house arrest since March 2026 due to medical issues.

[21] Ministério Público Federal, Procuradoria-Geral da República (PGR), "PGR Denuncia 34 Pessoas por Atos Contra o Estado Democrático de Direito," February 18, 2025; Polícia Federal, Relatório Nº 4546344/2024, November 2024; and Supremo Tribunal Federal (STF), "STF Fixa Penas de 16 a 27 Anos para Condenados por Tentative de Golpe de Estado," September 11, 2025.

[22] STF, "Relator Suspende Aplicação da Lei da Dosimetria a Execuções Penais no STF," May 9, 2026.

[23] International Monetary Fund (IMF), "IMF Data," accessed September 24, 2026.

[24] Instituto Brasileiro de Geografia e Estatística (IBGE), "GDP Grows 3.4% in 2024 and Closes the Year at R$ 11.7 Trillion," March 7, 2025; and IMF, "IMF Executive Board Concludes 2025 Article IV Consultation with Brazil," July 17, 2025.

[25] IBGE, "PNAD Contínua - Pesquisa Nacional por Amostra de Domicílios Contínua, Séries Históricas," accessed October 7, 2026.

[26] 2025 poverty data are not yet available. Brazil uses the World Bank's poverty line for upper-middle-income countries of $6.85 per person per day (in 2017 purchasing power parity dollars). IBGE, Agência de Notícias, "8,6 Milhões de Pessoas Saíram da Pobreza entre 2023 e 2024," December 3, 2025.

[27] Quaest, "Pesquisa de Intenção de Voto para Presidente," September 7, 2026.

[28] EIU, "One-Click Report: Brazil," October 23, 2026.

[29] IBGE, Sistema IBGE de Recuperação Automática (SIDRA), "Tabela 7060 – IPCA – Variação Mensal, Acumulada
(continued...)

relief measures intended to mitigate the impact of price surges on Brazilians, using some of the revenues the government has received as a result of Brazil's increased oil exports.[30] The Brazilian government is under pressure from international investors to tighten its fiscal policies, however, as the federal government is expected to run a 7.3% deficit and gross government debt is expected to exceed 82% of GDP in 2026.[31]

Approach to the Amazon Forest

About 62% of the greater Amazon region, encompassing the Amazon Forest and the Amazon Basin, is located within Brazil.[32] Deforestation in the Brazilian Amazon,[33] which fell by nearly 77% over the course of Lula's first two terms, began rising in 2012 and reached a 15-year high of 5,034 square miles in 2021 under the Bolsonaro administration (see **Figure 2**). Some analysts linked the 2012-2021 increase in deforestation to a series of government policy reversals that cut federal funding for environmental enforcement, reduced the size of protected areas, and relaxed conservation requirements.[34] Market incentives, such as international prices for beef, soybeans, and gold, among other commodities, also appear to have contributed to deforestation trends.[35] Some scientists have warned that the Amazon forest may be nearing a tipping point at which the forest, no longer able to sustain itself, could transition to a drier, savanna-like ecosystem.[36] This cycle of deforestation and drought could reduce the forest's capacity to absorb and sequester carbon, as well as reduce the precipitation that fuels forest regeneration and growth and Brazil's agricultural and hydropower production.[37]

The Lula administration has pledged to eliminate net deforestation in the Brazilian Amazon by 2030.[38] Effectively monitoring and controlling activities in the region is difficult given the size of the Brazilian Amazon, which encompasses 58.9% of Brazil's territory and is home to 26.7 million inhabitants.[39] Among other measures, the Lula administration has increased environmental

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no Ano, Acumulada em 12 Meses e Peso Mensal, para o Índice Geral, Grupos, Subgrupos, Itens e Subitens de Produtos e Serviços (a Partir de Janeiro/2020)," September 2026.

[30] EIU, "Subsidies and Tax Relief Intended to Cushion Oil Shock," April 29, 2026.

[31] EIU, "One-Click Report: Brazil," October 23, 2026.

[32] Daniel Santos et al., *Fatos da Amazônia 2025*, Amazônia 2030, April 30, 2025, p. 14.

[33] Within Brazil, the government has established an administrative zone known as the Legal Amazon, which is comprised of nine states that fall within the Amazon Basin: Acre, Amapá, Amazônia, Maranhão, Mato Grosso, Pará, Rondônia, Roraima, and Tocantins. Although rainforest covers most of the Legal Amazon, savanna (*Cerrado*) and wetlands (*Pantanal*) are also present in portions of the region.

[34] See, for example, Philip Fearnside, "Business as Usual: A Resurgence of Deforestation in the Brazilian Amazon," *Yale Environment 360*, April 18, 2017; and Associação Nacional dos Servidores de Meio Ambiente, *Cronologia de um Desastre Anunciado: Ações do Governo Bolsonaro para Desmontar as Políticas de Meio Ambiente no Brasil*, September 4, 2020.

[35] See, for example, Javier Miranda, Wolfgang Britz, and Jan Börner, "Impacts of Commodity Prices and Governance on the Expansion of Tropical Agricultural Frontiers," *Scientific Reports*, vol. 14 (2024); and Nora L. Alvarez-Berríos and T. Mitchell Aide, "Global Demand for Gold is Another Threat for Tropical Forests," *Environmental Research Letters*, vol. 10 (2015).

[36] Thomas Lovejoy and Carlos Nobre, "Amazon Tipping Point: Last Chance for Action," *Science Advances*, vol. 5, no. 12 (2019).

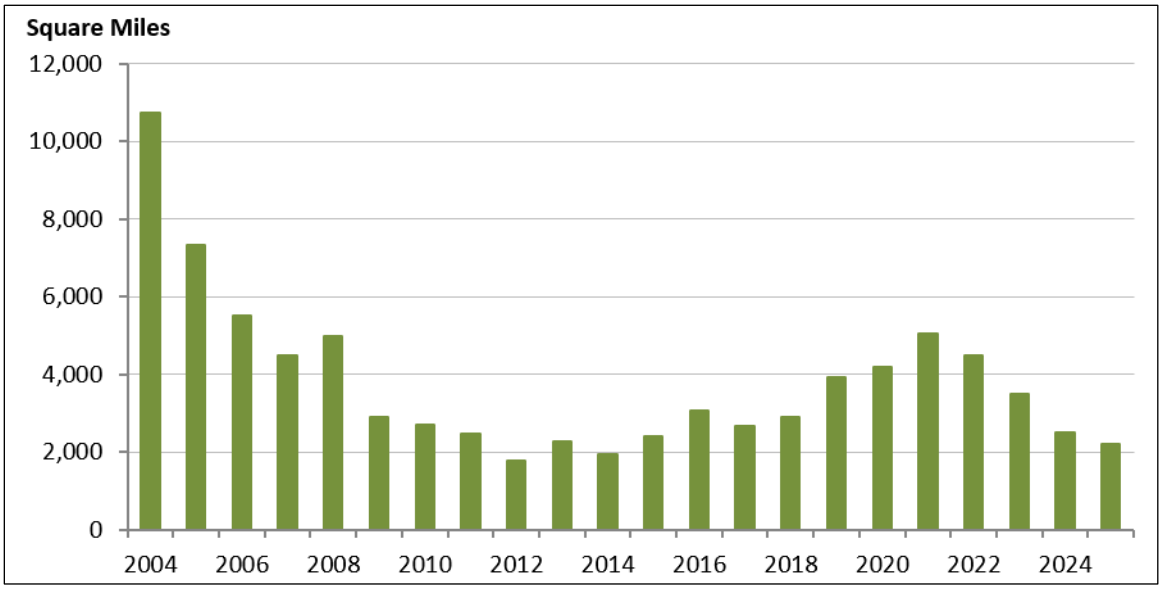
[37] According to Brazil's Empresa de Pesquisa Enegética, Hydropower accounted for 51.7% of Brazil's electricity generation in 2025. Luciana V. Gatti et al., "Amazonia as a Carbon Source Linked to Deforestation and Climate Change," *Nature*, vol. 595 (2021); Augusto Getirana et al. "Brazil is In Water Crisis—It Needs a Drought Plan," *Nature*, vol. 600 (2021).

[38] Ministério do Meio Ambiente e Mudança do Clima, *Action Plan for the Prevention and Control of Deforestation in the Legal Amazon (PPCDAm): Fifth Phase (2023-2027)*, 2023.

[39] Santos et al., *Fatos da Amazônia 2025*, p. 19.

enforcement operations, expanded protected areas, implemented an income support program for families engaged in conservation, and issued concessions for sustainable forest management and forest restoration.[40] The Lula administration, with the support of other countries, also relaunched the Amazon Fund—created in 2008 but frozen during the Bolsonaro administration—as a vehicle for international donors to support such efforts. The politically powerful rural caucus in the Brazilian congress and some state governments, such as Mato Grosso, have pushed back on some of the Lula administration's environmental policies. The Lula administration also has continued to support the expansion of oil and gas production in Brazil, including in environmentally sensitive areas in the Amazon Basin. Nevertheless, the Lula administration's approach appears to have contributed to a 51% decrease in deforestation in the Brazilian Amazon between 2022 and 2025 (see **Figure 2**).

Figure 2. Deforestation in Brazil's "Legal Amazon": 2004-2025



Source: CRS presentation of data from the Brazilian government's Instituto Nacional de Pesquisas Espaciais (INPE), "PRODES (Deforestation)," TerraBrasilis database, accessed August 25, 2026, https://terrabrasilis.dpi.inpe.br/app/dashboard/deforestation/biomes/legal_amazon/rates.

Notes: Annual monitoring periods run from August to July (e.g., 2025 data include deforestation from August 2024 to July 2025). The "Legal Amazon" is an administrative region designated by the Brazilian government that is comprised of nine states that fall within the Amazon Basin: Acre, Amapá, Amazônia, Maranhão, Mato Grosso, Pará, Rondônia, Roraima, and Tocantins. Although rainforest covers most of the Legal Amazon, savanna (Cerrado) and wetlands (Pantanal) are also present in portions of the region.

2026 General Elections

On October 25, 2026, President Lula was elected to a fourth four-year term.[41] He defeated former President Bolsonaro's son, Senator Flávio Bolsonaro of the PL, 51.8% to 48.2%, in a second-round runoff election.[42] Bolsonaro had edged out Lula in the first-round vote held on October 4,

[40] Presidência da República, "Marina Silva Presents Overview of Federal Environmental Protection Results," June 17, 2024.

[41] Brazilian presidents are limited to two consecutive terms but may serve additional non-consecutive terms.

[42] TSE, "Eleição Geral Ordinária 2026, 2º Turno," October 25, 2026, https://resultados.tse.jus.br/oficial/app/index.html#/eleicao/6258/uf/br/cargo/1/vis/nominal/resultados.

2026, 47.0% to 45.2%, but was short of the majority needed to avoid a runoff; the remainder of valid votes in the first round were split among 10 other candidates.[43] The number of Brazilians casting valid votes increased by nearly 4.8 million between the first and second rounds as the election became a choice between two polarizing candidates.[44] The final vote shares obtained by each candidate closely tracked Brazilians' rejection of their opponents; in a poll fielded the week before the runoff, 47% of Brazilians stated they would never vote for Lula while 52% stated they would never vote for Bolsonaro.[45]

Senator Bolsonaro initially stated that he planned to challenge the election results due to the decision of a Lula-appointed STF justice, Cristiano Zanin, to extend voting by two hours.[46] According to press reports, the Lula and Bolsonaro campaigns both requested extended voting hours in certain areas of the country: the Lula campaign in municipalities where local governments allegedly had reduced public transportation service and the Bolsonaro campaign in regions of southern Brazil affected by heavy rainfall. The voting extension order was to apply nationwide but reportedly was implemented unevenly, as some polls had already closed.[47] Some 34,000 votes reportedly were cast during the extension; Lula's margin of victory was 4.4 million votes.[48] An Organization of American States electoral observation mission, many foreign governments, and most of Brazil's political leadership—including Bolsonaro's PL—have recognized Lula's victory.[49] As of October 28, 2026, the Trump Administration had not recognized the results (see "Bolsonaro Prosecution and 2026 Elections").

On October 28, 2026, Senator Bolsonaro entered the United States claiming that Brazil's presidential election had been fraudulent and that he was facing political persecution.[50] He reportedly has been under investigation in two cases in Brazil involving potential financial crimes. One case reportedly is focused on financial support for a film about former President Bolsonaro that Senator Bolsonaro sought from a banker allegedly involved in a multibillion-dollar fraud scheme; corruption scandals related to the banker have implicated politicians across the political spectrum as well as some STF justices. The other case reportedly involves potential

[43] TSE, "Eleição Geral Ordinária 2026, 1º Turno," October 5, 2026, https://resultados.tse.jus.br/oficial/app/index.html#/eleicao/6257/uf/br/cargo/1/vis/nominal/resultados.

[44] TSE, "Eleição Geral Ordinária 2026, 1º Turno"; and TSE, "Eleição Geral Ordinária 2026, 2º Turno."

[45] In the same poll, 44% of Brazilians reported that they feared the Bolsonaro family's return to power and 42% reported that they feared Lula's reelection. *Valor International*, "Flávio Edges Lula 45% to 44% in Runoff, Quaest Poll Shows," October 21, 2026.

[46] Oliver Griffin and Luciana Novaes Magalhaes, "Brazil Heads Back to the Future as Flavio Bolsonaro Refuses to Recognize Lula Win," Reuters, October 26, 2026.

[47] See, for example, Michael Pooler and Geoff Dyer, "Brazil's Supreme Court Extends Voting as Transport Complaints Mar Election," *Financial Times*, October 25, 2026.

[48] Patricia Campos Mello, "Só 0,03% do Total de Votos foram Registrados após as 17h, Contrariando Alegações de Fraude de Flávio," Folhapress, October 26, 2026; and TSE, "Eleição Geral Ordinária 2026, 2º Turno."

[49] Organization of American States, *Preliminary Report, OAS Electoral Observation Mission, 2026 Presidential Runoff Elections in Brazil*, October 27, 2026; Associated Press, "In Their Words: Global Leaders Congratulate Trump Critic Lula on Reelection in Brazil," October 26, 2026; and *LatinNews Daily*, "Brazil: Bolsonaro's Party Recognizes Election Defeat," October 27, 2026.

[50] Flávio Bolsonaro (@FlavioBolsonaro), "Carta à Nação Brasileira," X post, October 28, 2026, https://x.com/FlavioBolsonaro/status/2115544562219315474?s=03.

money laundering tied to an online betting company.[51] The STF reportedly ordered the seizure of Bolsonaro's passports following the election due to concerns he planned to flee the country.[52]

President Lula is to be inaugurated to his fourth term on January 5, 2027. He may face additional congressional opposition in the new term due to the results of legislative elections for the full Chamber of Deputies and two-thirds of the seats in the Brazilian Senate that were held concurrently with the first-round presidential vote. Bolsonaro's PL picked up seats in both houses and is to be the largest party in Brazil's 58th legislature (February 1, 2027-January 31, 2031), holding 121 of 513 seats in the Chamber of Deputies and 29 of 81 seats in the Senate. The PL's gains largely came at the expense of centrist and center-right parties. According to one assessment of the ideologies of the 15 political parties and party federations to be represented in the next congress, legislators affiliated with the PL and other right-wing parties are to collectively hold majorities in both houses.[53]

Brazil's Foreign Policy

Although the short-term areas of emphasis of Brazilian foreign policy have varied since Brazil's return to democracy, successive Brazilian administrations generally have sought to increase the country's influence on global affairs while maintaining Brazil's autonomy.[54] While pursuing these objectives, Brazilian officials have emphasized the principles of multilateralism, peaceful dispute settlement, and nonintervention in the affairs of other countries.[55] In practice, this approach has involved the pursuit of cooperative relations with international partners of varying ideologies and systems of government, including the United States, the European Union (EU), Brazil's South American neighbors, and fellow members of the BRICS group (originally named for Brazil, Russia, India, China, and South Africa).[56]

Since returning to office in 2023, President Lula has sought to reassert Brazil's influence abroad after two Brazilian administrations that arguably were more focused on domestic challenges. He has placed particular emphasis on presidential diplomacy, convening and hosting various gatherings of world leaders. These gatherings have included a summit of South American leaders (May 2023), a meeting of Amazon Basin countries (August 2023), a Group of 20 (G-20) summit (November 2024), a BRICS summit (July 2025), and the 30th session of the Conference of the Parties to the UN Framework Convention on Climate Change (November 2025).

Similar to his previous terms, Lula also has sought to mediate some regional and global conflicts since returning to office. Perhaps most prominently, the Lula administration sought to mediate between the Venezuelan government of then-President Nicolás Maduro (2013-2026) and the

[51] Aline Freitas, "What Are the Investigations Into Flávio Bolsonaro, the Defeated Presidential Candidate Who Flex Brazil for the US?" *G1*, October 28, 2026.

[52] Mauricio Savarese, "What to Know About Brazil's Bolsonaro's Departure to the US After His Electoral Defeat," Associated Press, October 29, 2026.

[53] Departamento Intersindical de Assessoria Parlamentar, "Direita e Ultraconservadorismo Tem Maioria no Congresso," October 5, 2026.

[54] See, for example, Miriam Gomes Saraiva and Marcel M. Valença, *A Política Externa Brasileira e Sua Projeção Internacional: Um Projeto Caracterizado pela Continuidade*, Centro Brasileiro de Relações Internacionais, 2012.

[55] Article 4 of Brazil's 1988 constitution, as amended, states that Brazil's international relations are governed by the following principles: national independence; prevalence of human rights; self-determination of the people; nonintervention; equality among nations; defense of peace; peaceful settlement of conflicts; repudiation of terrorism and racism; cooperation among people for the progress of humanity; and granting of political asylum.

[56] William McIlhenny, "Brazil: A Voice for All?," in *Alliances in a Shifting Global Order: Rethinking Transatlantic Engagement with Global Swing States*, German Marshall Fund of the United States, May 2, 2023, pp. 22-26.

political opposition following an apparently fraudulent 2024 presidential election. Brazil also put forward a joint peace proposal with the PRC to end the Russia-Ukraine war. Neither diplomatic initiative proved fruitful. Although U.S. officials reportedly have urged the Brazilian government to take on a more prominent role in addressing the security crisis in Haiti, Brazil's involvement has been limited under the Lula administration.[57] Some Brazilian policymakers reportedly assess that the United Nations Stabilization Mission in Haiti that Brazil commanded between 2004 and 2017 largely failed to accomplish its mandate and that another international security presence is unlikely to more successful.[58]

Brazil's approach to the BRICS group and relations with the PRC, which have been of particular interest to some Members of Congress, are discussed below.

Approach to the BRICS Group

Brazil has long sought a more prominent role and greater influence in the UN Security Council and other international institutions, which Brazilian officials have argued need to better represent developing countries.[59] Brazil's reform proposals have been frustrated repeatedly, giving rise to what appears to be a widespread perception among Brazilian foreign policymakers that the United States and European countries are unwilling to cede space. According to some analysts, Brazil has responded by working with coalitions like the BRICS group to increase the country's leverage in global policy discussions.[60] Inclusion in the BRICS, alongside China and India, also arguably has bolstered Brazil's efforts to portray itself as a rising power.

The Lula administration has described the BRICS as "a strategic platform to promote cooperation between emerging countries," and has pushed back against efforts—within and outside the BRICS—to characterize the bloc as "anti-Western."[61] At the same time, President Lula has repeatedly called for the BRICS to adopt alternatives to the U.S. dollar for trade among BRICS countries, in part to reduce vulnerability to dollar exchange rate fluctuations.[62] Since 2024, Egypt, Ethiopia, Indonesia, Iran, and the United Arab Emirates have joined the BRICS.[63] Brazil reportedly resisted this expansion, due to concerns that it could reduce Brazil's influence and the

[57] Jacqueline Charles, "Race, Discrimination and Haiti Dominate Discussions in Brazil as Top Biden Official Visits," *Miami Herald*, May 25, 2023; and Evens Sanon, "Haiti to Send 400 Police Officers to Brazil for Training as Gangs Seize More Territory," Associated Press, July 28, 2025.

[58] See, for example, Oliver Stuenkel, "Why Lula Is Silent on Haiti," *Foreign Policy*, April 1, 2024.

[59] See, for example, President Luiz Inácio Lula da Silva (Lula), "Speech by President Lula at the Opening of the 79th UN General Assembly in New York," Ministério das Relações Exteriores (MRE), September 24, 2024.

[60] See, for example, Oliver Stuenkel, "How Brazil Embraced Informal Organizations," *International Politics*, April 28, 2022.

[61] Presidência da República, "Speech by President Luiz Inácio Lula da Silva at the Opening of the 78th UN General Assembly," September 19, 2023; and "Brazil: Brazil is a Western Country, Minister Claims," *Latin American Security & Strategic Review*, December 2024.

[62] See, for example, Presidência da República, "President Lula's Speech During the Open Plenary Session of the BRICS Summit," October 23, 2024; and Rachel Savage, "Explainer: What Is a BRICS Currency and Is the U.S. Dollar in Trouble?" Reuters, August 24, 2023.

[63] The BRICS group also lists Saudi Arabia as a member on its website, but Saudi Arabia reportedly has held off on formally joining the bloc. BRICS, "About Brics," https://www.brics2026.gov.in/about-us/; and Pesha Magid, Maha El Dahan, and Manya Saini, "Saudi Arabia Sits on Fence over BRICS with Eye on Vital Ties with U.S.," Reuters, May 8, 2025.

bloc's cohesion, shift the balance of power within the bloc in a more authoritarian direction, and complicate Brazil's efforts to maintain an autonomous foreign policy.[64]

Brazil held the rotating presidency of the BRICS in 2025, and Lula's protégé, former President Dilma Rousseff (2011-2016), was appointed to a second five-year term as the President of the New Development Bank (formerly known as the BRICS Bank) in March 2025. During its year-long BRICS presidency, the Brazilian government focused on cooperation in the "Global South," with a particular emphasis on health, trade and investment, climate change, artificial intelligence (AI), UN Security Council reform, and the institutional development of the BRICS group.[65] During the July 2025 BRICS summit in Brazil, the bloc issued a 126-point declaration that included calls for reform and increased representation for BRICS and other developing countries in international organizations, including the UN Security Council, and continued cooperation within the BRICS to increase the interoperability of BRICS payment systems. The declaration also condemned the rise of unilateral tariffs, the imposition of economic and secondary sanctions, and military strikes against Iran, without explicitly mentioning the United States.[66] Other documents adopted at the summit focused on climate finance, global governance of AI, and the elimination of diseases associated with poverty and inequality.

Brazil-China Relations

In addition to engaging in multilateral cooperation within the BRICS group and other fora, Brazil and China have forged extensive bilateral ties. The countries have maintained formal diplomatic relations since 1974 and a "strategic partnership" since 1993.[67] The Brazilian and PRC governments also have engaged in frequent high-level diplomacy, with China hosting state visits for each of the past five Brazilian presidents and Brazil hosting state visits for PRC leader Xi Jinping (most recently in 2024) and his predecessor Hu Jintao.[68] During Lula's May 2025 state visit to China, the Brazilian and PRC governments signed 20 bilateral agreements related to AI, energy, infrastructure, mining, space, and trade, among other areas of cooperation.[69]

Brazil's relationship with China appears to be driven primarily by economic interests. Between 2005 and 2025, Brazil's annual goods trade with China climbed from $12.2 billion to $170.9 billion, and China's share of Brazil's global goods trade rose from 6.3% to 27.2%. In 2025, Brazil ran a $29.0 billion goods trade surplus with China.[70] Brazilian export growth has been heavily concentrated in a few products, particularly benefitting Brazil's mineral extraction industry and

[64] See, for example, Lisa Paraguassu, "Brazil Now Main Holdout Against BRICS Expansion, Source Say," Reuters, August 2, 2023; and Oliver Stuenkel, "BRICS Grouping Weighs Expansion Ahead of Leaders' Summit in South Africa," *Foreign Policy*, June 22, 2023.

[65] Presidência do Brasil – BRICS 2025, "Fortalecendo a Cooperação do Sul Global para uma Governança Mais Inclusiva e Sustentável," Nota Conceitual, 2025.

[66] BRICS, Rio de Janeiro Declaration, Strengthening Global South Cooperation for a More Inclusive and Sustainable Governance, July 6, 2025.

[67] The PRC and Brazilian governments have "elevated" bilateral ties several times, most recently characterizing the relationship as a "Community with a Shared Future for a More Just World and Sustainable Planet" in November 2024. Presidência da República, "Brazil and China Expand Bilateral Relations During State Visit by President Xi Jinping," November 21, 2024.

[68] This total counts Lula twice due to his non-consecutive terms. MRE, "Bilateral Relations: People's Republic of China," February 7, 2025.

[69] MRE, "Atos Adotados por Ocasião de Estado do Presidente Luiz Inácio Lula da Silva a Pequim, China, 12 e 13 de Maio de 2025," May 14, 2025.

[70] Ministério do Desenvolvimento, Indústria, Comércio e Serviços (MDIC) data, as reported by *Trade Data Monitor*, accessed August 25, 2026.

the politically influential agribusiness sector. In 2025, for example, soybeans, iron ore, crude oil, and frozen beef collectively accounted for 83.0% of the total value of Brazilian exports to China.[71] Brazilian manufacturers, on the other hand, have faced increased competition from imports from China, which some blame for deindustrialization.[72]

PRC investment and development finance in Brazil also have increased over the past 20 years, despite Brazil not having formally signed onto China's "Belt and Road Initiative."[73] According to the Brazil-China Business Council, between 2007 and 2025, PRC companies invested $85.5 billion in 355 projects in Brazil. The top sectors by project value were electricity (44% of total), oil (28%), manufacturing (9%), and mining (8%).[74] The focus of such investments has shifted over time, with 60% of projects in 2025 focused on green energy and related sectors, including electric vehicles and hydroelectric, solar, and wind energy.[75] According to the China Global Investment Tracker database, which tracks investments over $95 million, Brazil received about 5% of PRC investment worldwide between 2005 and 2025, ranking fourth behind the United States (13%), Australia (7%), and the United Kingdom (7%).[76] Between 2005 and 2023 (most recent year available), the Brazilian government and state-owned enterprises received $32.4 billion in loans from China's state-owned policy banks (i.e., China Development Bank and the Export-Import Bank of China), primarily for the energy sector.[77]

Although some Brazilian leaders have expressed concerns at times about PRC investments in strategic sectors, they generally have lacked the political support, political will, or both to restrict such investments. For example, President Bolsonaro entered office reportedly warning that the PRC was "buying Brazil," but did not change the trajectory of Brazil's trade and investment relations with China.[78] His administration also permitted PRC companies like Huawei to participate in the development of Brazil's commercial fifth generation (5G) telecommunications infrastructure.[79]

Brazil's military ties with China appear to be limited. The Brazilian and PRC governments established a joint exchange and cooperation commission in 2004 and signed a defense cooperation framework agreement in 2011. Those mechanisms have facilitated education and

[71] Product descriptions based on four-digit Harmonized Tariff Schedule (HTS) codes. MDIC data, as reported by *Trade Data Monitor*, accessed August 25, 2026.

[72] See, for example, "Steelmakers See Room to Grow but Demand Trade Protection," *Valor International*, October 13, 2025. Between 2005 and 2025, the manufacturing sector's share of Brazil's GDP fell from 15.6% to 10.3%. EIU, "Data" tool, accessed August 25, 2026.

[73] The Belt and Road Initiative (BRI), a signature policy initiative first announced by Xi Jinping in 2013, aims to expand China's global economic reach and influence by developing China-centered and -controlled global infrastructure, transportation, trade, and production networks. Although Brazil has opted not to formally join the BRI, China lists Brazil among BRI countries on its official BRI website: https://www.yidaiyilu.gov.cn/country. In November 2024, the Brazilian government announced that it would work with the PRC to pursue "synergies" between its industrial, infrastructure, and climate change mitigation and adaptation policies and the BRI. Presidência da República, "Brazil and China Expand Bilateral Relations During Visit by President Xi Jinping," November 21, 2024.

[74] Tulio Cariello, *Chinese Investment in Brazil, 2025: Mining, Electric Vehicles, and Renewables*, Brazil-China Business Council, April 2026, pp. 33-34.

[75] Cariello, *Chinese Investment in Brazil, 2025*, p. 28.

[76] Derek Scissors, *Steady, Not Soaring, Chinese Investment in 2025*, American Enterprise Institute, January 2026, p. 6.

[77] Rebecca Ray and Margaret Myers, "Chinese Loans to Latin America and the Caribbean Database," Inter-American Dialogue and Boston University Global Development Policy Center, 2024, https://www.thedialogue.org/MapLists/#/Policy/country/brazil.

[78] Jake Spring, "Bolsonaro's Anti-China Rants have Beijing Nervous about Brazil," Reuters, October 25, 2018.

[79] Facing pressure from the U.S. government, the Bolsonaro administration excluded Huawei from a separate network for government communications. "China Ganha por Pontos Batalha Brasileira na Guerra do 5G com os EUA," *Folha de São Paulo*, November 4, 2021.

training exchanges for some Brazilian and PRC military personnel as well as occasional joint exercises.[80] In January 2026, for example, a PRC hospital ship docked in Rio de Janeiro and its officers reportedly met and held some exchanges with a Brazilian navy delegation.[81] According to the Stockholm International Peace Research Institute's Arms Transfers Database, there have not been any major arms transfers between China and Brazil.[82] Brazil, which by some assessments has the most advanced defense industry in Latin America, also competes with China to supply the South American defense market.[83] Some Members of Congress have expressed concern that PRC access to potential dual-use infrastructure in Brazil, including a satellite ground station and radio astronomy laboratory, could support PRC military objectives.[84]

U.S.-Brazil Relations

The United States and Brazil marked 200 years of diplomatic relations in 2024. Historically, the two countries have maintained robust political and economic ties, but differing perceptions of their respective national interests appear to have hindered the development of a closer partnership. That dynamic changed to some extent in 2019 and 2020, during which then-President Bolsonaro brought Brazil's foreign policy into closer alignment with U.S. foreign policy, President Donald Trump designated Brazil as a major non-NATO ally, and the U.S. and Brazilian governments negotiated a Protocol on Trade Rules and Transparency intended to facilitate trade and regulatory cooperation (see "Defense" and "Trade and Investment Relations"). The Biden Administration continued to engage with the Bolsonaro administration on military and economic matters while carrying out a high-level diplomatic effort that had the stated of aim of ensuring Brazil's 2022 elections were free and fair and resulted in a peaceful transfer of power (see "Brazil's 2022 Elections and Aftermath"). After Lula took office, the Biden Administration's cooperation with Brazil shifted to place more emphasis on environmental concerns (see "Environmental Cooperation").

Bilateral relations have been strained since July 2025. That month, President Donald Trump announced his intention to impose additional 40% tariffs on Brazilian imports and the U.S. Departments of State and Treasury imposed sanctions on some Brazilian supreme court justices in response to the criminal prosecution of former President Bolsonaro and the STF's regulation of social media content, which the Administration characterized as political persecution and censorship.[85] A series of high-level meetings following Bolsonaro's September 2025 conviction appear to have contributed to a temporary rapprochement between the Lula and Trump

[80] Danilo Marcondes and Pedro Henrique Batista Barbosa, "Brazil-China Defense Cooperation: A Strategic Partnership in the Making?," *Journal of Latin American Geography*, vol. 17, no. 2 (July 2018); and Yuanyue Dang, "In Rare Shift, China Will Send Marine Corps to Brazil for Joint Exercise," *South China Morning Post*, September 6, 2024.

[81] Thayz Guimarães, "China's Latest Naval Moves in the Western Hemisphere Put Brazil in the Diplomatic Spotlight," Atlantic Council, January 14, 2026.

[82] Stockholm International Peace Research Institute (SIPRI), "Arms Transfers Database," accessed October 27, 2026.

[83] IHS Jane's Defense & Security Intelligence & Analysis, "Brazil – Market Report," September 3, 2026; Nelson Mendonça Júnior, *Os Reflexos da Inserção da China no Mercado de Defesa da América do Sul para a Indústria de Defesa Brasileira*, Escola de Comando e Estado-Maior do Exército, Trabalho de Conclusão de Curso, Rio de Janeiro, 2019.

[84] U.S. Congress, House Select Committee on the Strategic Competition Between the United States and the Chinese Communist Party, *Pulling Latin America into China's Orbit: How the PLA Weaponizes the Ground Architecture of the Space Silk Road in Venezuela, Brazil, Bolivia, Argentina, and Chile*, 119th Cong., 2nd sess., February 26, 2026.

[85] Letter from Donald J. Trump, President of the United States, to Luiz Inacio Lula da Silva, President of the Federative Republic of Brazil, July 9, 2025; Secretary of State Marco Rubio, "Announcement of Visa Restrictions on Brazilian Judicial Officials and Their Immediate Family Members," U.S. Department of State, July 18, 2025; and U.S. Department of the Treasury, "Treasury Sanctions Alexandre de Moraes," July 30, 2025.

Administrations in late 2025. Bilateral tensions escalated again in 2026, however, reflecting continuing differences between the two governments regarding Brazilian efforts to hold accountable individuals involved in activities Brazil has deemed antidemocratic and U.S. actions perceived by some Brazilian officials as political intervention in Brazil (see "Bolsonaro Prosecution and 2026 Elections" and "U.S. Tariffs").

The Trump Administration's approach to bilateral relations appears to be generating some backlash in Brazil. In Pew Research Center polling conducted between February and April 2026, 76% of Brazilians asserted that the United States interferes "a great deal" or "a fair amount" in the affairs of other countries. The same poll found that 47% of Brazilians had favorable views of the United States (down from 64% in spring 2024) and 30% of Brazilians had confidence in President Trump to "do the right thing regarding world affairs."[86]

Engagement on Democracy and Freedom of Expression

Over the past four years, some Members of Congress and other U.S. policymakers have expressed concerns about potential threats to democracy and freedom of expression in Brazil. Like Brazilians, they have articulated different views about the source of such threats and U.S. policy responses.

Brazil's 2022 Elections and Aftermath

In the lead up to Brazil's 2022 elections, then-President Bolsonaro repeatedly questioned the integrity of Brazil's electoral system.[87] The Biden Administration, in contrast, expressed confidence in Brazil's electoral institutions and reportedly held meetings with Brazilian officials urging them to respect the electoral process.[88] In September 2022, the U.S. Senate adopted a resolution (118th Congress, S.Res. 753) that urged the Brazilian government to ensure "free, fair, credible, transparent, and peaceful" elections. The resolution also called on the U.S. government to speak out against efforts to undermine the electoral process, immediately recognize the outcome of elections determined by international observers to be free and fair, and make clear that undemocratic actions would jeopardize U.S.-Brazilian relations, including U.S. security assistance. By some accounts, these U.S. efforts helped ensure a peaceful transition in Brazil.[89]

In the aftermath of the January 8, 2023, riots in Brazil, some Members of Congress introduced resolutions condemning the attacks on Brazilian government institutions (e.g., 118th Congress, H.Res. 106 and S.Res. 32). Some Members also sought to collaborate with their Brazilian counterparts and share best practices on congressional investigations.[90] Additionally, some Members called on the Biden Administration to investigate any actions taken on U.S. soil to organize the events of January 8, and to work with the Brazilian government to uphold the rule of

[86] Richard Wike et al., *Trump Gets Negative Reviews Internationally as Fewer Say U.S. is a Reliable Partner*, Pew Research Center, June 23, 2026, pp. 9, 13, and 30; and Richard Wike et al., *Globally, Biden Receives Higher Ratings Than Trump*, Pew Research Center, June 11, 2024, p. 8.

[87] For a compilation of Bolsonaro's statements, see Jack Nicas, Flávia Milhorance, and Ana Ionova, "How Bolsonaro Built the Myth of Stolen Elections in Brazil," *New York Times*, October 25, 2022.

[88] See, for example, White House (Biden Administration), "Remarks by President Biden and President Jair Bolsonaro of Brazil Before Bilateral Meeting," June 9, 2022; and Gabriel Stargardter and Matt Spetalnick, "Exclusive—CIA Chief Told Bolsonaro Government Not to Mess with Brazil Election, Sources Say," Reuters, May 5, 2022.

[89] See, for example, Matt Stott, Michael Pooler, and Bryan Harris, "The Discreet US Campaign to Defend Brazil's Democracy," *Financial Times*, June 21, 2023; and Oliver Stuenkel, "How U.S. Pressure Helped Save Brazil's Democracy," *Foreign Policy*, February 20, 2024.

[90] Reuters, "Exclusive: U.S. and Brazil Lawmakers Seek to Cooperate on Investigation of Brasilia Riots," January 11, 2023.

law, including by ensuring former President Bolsonaro was held accountable for any crimes he may have committed.[91]

Bolsonaro Prosecution and 2026 Elections

Some other Members of Congress and the Trump Administration have expressed concerns about the criminal prosecution of former President Bolsonaro and his allies.[92] In July 2025, President Trump issued Executive Order (EO) 14323, which characterized the prosecution of former President Bolsonaro and the Brazilian judiciary's approach to regulating social media content (see "Freedom of Expression in Brazil") as political persecution, censorship, and a threat to free and fair elections in 2026. The EO asserted that these actions constituted an "unusual and extraordinary threat" to the national security, foreign policy, and economy of the United States and invoked the National Emergencies Act (NEA; 50 U.S.C. §§1601 et seq.) and the International Emergency Economic Powers Act of 1977 (IEEPA; 50 U.S.C. §§1701 et seq.) to impose an additional 40% tariff on U.S. imports from Brazil (see "U.S. Tariffs").[93] In trade negotiations after Bolsonaro's September 2025 conviction, Trump Administration officials reportedly pressed the Brazilian government to allow "political dissidents"—apparently referring to former President Bolsonaro—to participate in the 2026 elections.[94] On July 28, 2026, President Trump extended the national emergency declared with respect to Brazil for another year.[95]

The U.S. Departments of State and Treasury also imposed sanctions on some Brazilian STF justices and other Brazilian officials in response to the prosecution of former President Bolsonaro and the judiciary's regulation of social media. In July 2025, Secretary of State Marco Rubio ordered visa revocations, pursuant to a provision of the Immigration and Nationality Act (INA; 8 U.S.C. §1182(a)(3)(C)), for Justice Alexandre de Moraes, who served as the rapporteur for the investigation into Bolsonaro,[96] "his allies on the court," and their immediate family members.[97] According to press reports, the State Department revoked the visas of at least 8 of the 11 STF justices as well as the head of the autonomous public prosecutor's office (*Procurador-Geral da República*), Paulo Gonet, prohibiting their entry into the United States.[98] The U.S. Department of the Treasury imposed additional economic sanctions on Justice de Moraes and his spouse in July and September 2025, respectively, pursuant to the Global Magnitsky Human Rights Accountability Act (Title XII, Subtitle F of P.L. 114-328, as amended).[99] The sanctions blocked

[91] See, for example, Letter from Joaquin Castro, Member of Congress, et al. to Honorable Joseph R. Biden, President of the United States, January 12, 2023, https://castro.house.gov/imo/media/doc/2023.1.11_BolsonaroJan8Attack_Final.pdf.

[92] See, for example, House Committee on Foreign Affairs, "Chairman Mast Issues Statement on Conviction of Former President Bolsonaro," September 12, 2025.

[93] Executive Order (EO) 14323 of July 30, 2025, "Addressing Threats to the United States by the Government of Brazil," 90 *Federal Register* 37739, August 5, 2025.

[94] Felipe Frazão, "EUA Exigiram do Brasil que Eleição Tivesse 'Dissidentes'," *Estado de São Paulo*, September 17, 2026.

[95] Notice of July 28, 2026, "Continuation of the National Emergency with Respect to Brazil," 91 *Federal Register* 47929, July 29, 2026.

[96] Within Brazil's judicial system, the rapporteur (*relator*) is charged with directing the judicial process and preparing a report that summarizes the case and provides an initial opinion and recommendations to the remaining justices.

[97] Secretary of State Marco Rubio, "Announcement of Visa Restrictions on Brazilian Judicial Officials and Their Immediate Family Members," U.S. Department of State, July 18, 2025.

[98] Marcela Ayres, "Senior Brazilian Official Says Judiciary Won't Be Intimidated by U.S. Visa Bans," Reuters, July 19, 2025.

[99] U.S. Department of the Treasury, "Treasury Sanctions Alexandre de Moraes," July 30, 2025; and U.S. Department of the Treasury, "Treasury Sanctions Support Network of Brazilian Supreme Court Justice," September 22, 2025.

Justice de Moraes and his spouse from accessing any property under U.S. jurisdiction and prohibited U.S. persons from engaging in transactions with them.[100] The Department of the Treasury lifted the Global Magnitsky sanctions in December 2025, reportedly linking the decision to Brazil's Chamber of Deputies passing a bill to reduce prison sentences for some individuals convicted of undemocratic actions (potentially including former President Bolsonaro).[101] It is unclear if the U.S. visa restrictions remain in place.

U.S. pressure on Brazilian authorities to halt the Bolsonaro prosecution reportedly was sought and welcomed by former President Bolsonaro's family and political allies,[102] but rejected by the leaders of all three branches of the Brazilian government.[103] Some Members of Congress had urged the Trump Administration to impose sanctions on Justice de Moraes for "human rights abuses and antidemocratic actions," asserting that de Moraes was attempting to "rig the 2026 election."[104] Other Members accused the Trump Administration of abusing U.S. tariff and sanction authorities to advance the interests of his political allies and "undermine Brazil's democracy."[105]

Some Trump Administration officials in the U.S. State Department reportedly sought to support the 2026 electoral campaign of Flávio Bolsonaro.[106] Among other actions, they reportedly directed U.S. Embassy personnel not to interact with other potential presidential contenders on the political right and pushed for the U.S. designation of two Brazilian criminal groups as foreign terrorist organizations, as requested by Bolsonaro during a May 2026 White House visit (see "Counternarcotics and Law Enforcement"). The Lula administration repeatedly condemned and sought to block apparent U.S. efforts to influence the elections. In July 2026, for example, the Brazilian government reportedly denied visas to two State Department officials who it suspected were planning to cast doubts on the fairness and integrity of Brazil's electoral system.[107] The Brazilian government also characterized other Trump Administration actions as political interference, including the imposition of additional tariffs on imports from Brazil in July 2026

[100] For more information on Global Magnitsky sanctions, see CRS In Focus IF10576, *Human Rights and Anti-Corruption Sanctions: The Global Magnitsky Human Rights Accountability Act*, by Michael A. Weber.

[101] U.S. Department of the Treasury, Office of Foreign Assets Control, "Notice of OFAC Sanctions Actions," 90 *Federal Register* 59942, December 22, 2025; and Fernando Cardoso, Lisandra Paraguassu, and Daphne Psaledakis, "US Lifts Sanctions on Brazil Judge Targeted by Trump," Reuters, December 13, 2025.

[102] See, for example, "Ofensiva de Bolsonaristas nos EUA Mira Presidente do STF e Insinua Novas Sanções de Trump," *Folha de São Paulo*, July 20, 2025; and "'Sensação de Missão Cumprida', Diz Eduardo Bolsonaro após Sanção de Trump a Moraes," *Folha de São Paulo*, July 30, 2025.

[103] See, for example, President Lula (@LulaOficial), X post, July 19, 2025, https://x.com/LulaOficial/status/1946556466665529728; Presidência da República, "O Brasil é um País Soberano e Democrático," July 30, 2025; Chamber of Deputies President Hugo Motta (@HugoMottaPB), X post, July 30, 2025, https://x.com/HugoMottaPB/status/1950673741031350708; Senate President Davi Alcolumbre (@davialcolumbre), X post, July 30, 2025, https://x.com/davialcolumbre/status/1950752011009343985; and STF, "Nota Oficial sobre Sanções dos EUA ao Ministro Alexandre de Moraes," July 30, 2025.

[104] See, for example, Letter from Rich McCormick, Member of Congress, and Maria Elvira Salazar, Member of Congress, to President Donald J. Trump and Secretary of State Marco Rubio, February 24, 2025, at https://x.com/RepMcCormick/status/1902783447535419803.

[105] See, for example, Senate Committee on Foreign Relations, "Top Senate Democrats Sound Alarm on Treasury Misusing Sanctions Program Meant to Address Serious Human Rights Abuse to Instead Help Trump's Political Allies," July 31, 2025; and House Committee on Foreign Affairs, "Meeks, Castro, Kamlager-Dove Issue Statement on Brazil's Conviction of Bolsonaro & Call on Trump to End Illegal Tariffs," September 11, 2025.

[106] Gabriel Stargardter, "Inside the Trump-Administration Campaign to Return Brazil's Bolsonaro Clan to Power," Reuters, October 24, 2026.

[107] Mariana Dias, Terrence McCoy, and Samantha Schmidt, "Brazil Denies Visas to U.S. Delegation Aiming to Impugn Election System, Officials Say," *Washington Post*, July 25, 2026.

(see "U.S. Tariffs").[108] The STF has directed the Brazilian Federal Police to investigate potential foreign interference in the Brazilian elections.[109]

As of October 28, 2026, the Trump Administration had not recognized the results of Brazil's 2026 presidential runoff, which President Trump alleged "looked like another rigged election."[110] Trump Administration officials also reportedly helped Flávio Bolsonaro and his family flee Brazil, where he was facing criminal investigations (see "2026 General Elections"), and arranged for them to be granted temporary parole to enter the United States on October 28, 2026.[111] According to press reports, the Administration previously granted permanent U.S. residency to Flávio's brother, Eduardo Bolsonaro, a former Member of Brazil's Chamber of Deputies, in July 2026.[112] Brazil's STF sentenced Eduardo Bolsonaro to more than four years in prison in June 2026 for the crime of coercion during legal proceedings as a result of his efforts to lobby the Trump Administration to impose sanctions and other pressure on Brazilian justices to halt the criminal prosecution of former President Bolsonaro.[113]

Some Members of Congress expressed concerns about the Trump Administration's actions in the lead up to Brazil's 2026 elections, asserting that U.S. officials had engaged in a "campaign of interference and destabilization in Brazil."[114] Some Members also questioned what, if any, role the Trump Administration played in helping Flávio Bolsonaro flee criminal charges in Brazil and enter the United States.[115] Some other Members of Congress expressed concerns about Brazil's electoral process and STF efforts to prevent Flávio Bolsonaro from leaving Brazil.[116]

Freedom of Expression in Brazil

Brazil's regulation of digital communications is another topic about which Members of Congress have expressed different views since 2022. During the 118th Congress, some Members expressed concerns about how disinformation and misinformation spread through social media may have contributed to the January 8 riots and introduced a resolution (S.Res. 32) urging social media and group messaging companies to "to take concrete steps to address the ways [their] platforms are

[108] Mauro Vieira, Foreign Minister of Brazil, "Your Excellencies, the Facts Regarding the Tariff Crisis," Washington Brazil Office, July 31, 2026; and Geisa Marques, "Abin Alerta Governo e TSE para Nível 'Crítico' de Interferência dos EUA nas Eleições Brasileiras," *Brasil de Fato*, September 19, 2026.

[109] STF, "Relator Determina Investigação Sobre Possível Interferência Estrangeira nas Eleições Brasileiras," October 27, 2026.

[110] Reuters, "Trump Says, Without Citing Evidence, that Brazil Election Looks 'Rigged'," October 26, 2026.

[111] Edward Wong et al., "Trump and His Aides Helped Bolsonaro Flee Brazil for the U.S.," *New York Times*, October 29, 2026; and Samantha Pearson and Vera Bergengruen, "Bolsonaro's Escape: Decoys, a Key Ally," *Wall Street Journal*, October 29, 2026. For more on parole, see CRS Report R46570, *Immigration Parole*, by Andorra Bruno.

[112] Luciana Novaes Magalhaes, "Son of Brazil's Former President Bolsonaro Secures US Green Card," Reuters, July 20, 2026.

[113] STF, "STF Condena Eduardo Bolsonaro por Coação no Curso do Processo sobre Tentativa de Golpe," June 16, 2026.

[114] Letter from Delia C. Ramirez, Member of Congress, et al. to Marco Rubio, Secretary of State, September 24, 2026, https://ramirez.house.gov/sites/evo-subsites/ramirez.house.gov/files/evo-media-document/rep-ramirez-letter-to-sec-rubio-on-brazil-elections-compressed.pdf; and Letter from Jeanne Shaheen, U.S. Senator, Peter Welch, U.S. Senator, and Tim Kaine, U.S. Senator, to Marco Rubio, Secretary of State, September 28, 2026, https://www.welch.senate.gov/wp-content/uploads/2026/09/FINAL_TRANSMIT-Letter-to-Sec-Rubio-re-Brazil-Elections.pdf.

[115] See, for example, Congressman Joaquin Castro (@JoaquinCastrotx), X post, October 27, 2026, https://x.com/JoaquinCastrotx/status/2115197464676307217.

[116] See, for example, Congressman Rich McCormick (@RepMcCormick), X post, October 27, 2026, https://x.com/RepMcCormick/status/2115068853851955413.

used to facilitate disinformation and misinformation in Brazil." Other Members have characterized regulation of social media content as censorship.[117]

The Brazilian constitution sets forth several principles related to freedom of expression.[118] Brazil also has ratified the International Covenant on Civil and Political Rights, which contains obligations related to freedom of expression while allowing for certain restrictions.[119] In 2025, however, Freedom House, a nongovernmental democracy and human rights advocacy organization, asserted that Brazil's legal framework "provides inadequate protection for freedom of expression," due in part to the proscription and regulation of certain types of speech.[120] For example, libel, slander, and defamation are criminal offenses, and Brazil's electoral code tightly regulates political campaign activities. Additionally, Brazil's 2014 civil rights framework for the internet established certain rights and obligations related to internet use, and a 2021 law for the defense of the democratic rule of law criminalizes inciting animosity between the armed forces and the executive, legislative, or judicial branches of government, among other offenses.[121]

The STF has taken a prominent role in regulating online content since March 2019, when then-STF President José Antonio Dias Toffoli opened an investigation into alleged "fake news" and internet threats targeting the STF, its justices, and their family members.[122] Some legal analysts questioned the STF's decision to open an investigation unilaterally, and some transparency and press rights advocates condemned the STF for using the investigation to order an online media outlet to remove a report about an STF justice.[123] Some observers also have questioned the sprawling nature of the probe, which has remained open for more than seven years.[124] While serving as the rapporteur for the fake news investigation between March 2019 and September 2026,[125] Justice de Moraes took a variety of unilateral actions that were controversial among sectors of the Brazilian population, including authorizing searches, freezing social media accounts, and ordering arrests; these decisions reportedly were upheld by the broader STF.[126]

Brazil's Superior Electoral Court (*Tribunal Superior Eleitoral*, or TSE) also has exercised its authority to combat the spread of information it has deemed false. During the 2022 electoral

[117] U.S. Congress, House Foreign Affairs Committee, Global Health, Global Human Rights, and International Organizations Subcommittee, *Brazil: A Crisis of Democracy, Freedom, & Rule of Law?*, 118th Cong., 2nd sess., May 7, 2024.

[118] Constitution of the Federative Republic of Brazil, Articles 5 and 220. For more information, see Eduardo Soares, "Brazil," in *Civic Space Legal Framework* (Law Library of Congress, 2020).

[119] See Article 19 of the International Covenant on Civil and Political Rights (1966), https://www.ohchr.org/en/instruments-mechanisms/instruments/international-covenant-civil-and-political-rights.

[120] Freedom House, *Freedom in the World 2025: Brazil*, February 26, 2025. For additional analysis, see Inter-American Commission on Human Rights, Special Rapporteur for Freedom of Expression, *Special Report on the Situation of Freedom of Expression in Brazil*, 2025, https://www.oas.org/en/iachr/expression/reports/relebrazilreport.pdf.

[121] Eduardo Soares, "Brazil," in *Initiatives to Counter Fake News in Selected Countries* (Law Library of Congress, 2019); and Presidência da República, Lei Nº 14.197, Arts. 286, 359.-L, and 359-M, September 1, 2021.

[122] Eduardo Soares, "Brazil: Federal Supreme Court Orders Criminal Investigation into Fake News Involving the Court," Law Library of Congress, April 1, 2019.

[123] Transparency International, "(April 2019) Supreme Court Decision in Brazil Violates Freedom of the Press and Sets Concerning Precedent," April 17, 2019; and Committee to Protect Journalists, "Brazilian Court Orders Online Magazine Crusoé to Remove Article About Judge," April 16, 2019.

[124] *Valor International*, "Top Court Chief Takes Over Fake News Probe to Contain Crisis," September 10, 2026.

[125] STF President Edson Fachin took over the fake news investigation in September 2026 amid a conflict between Justice de Moraes and STF Justice André Mendonça, who is overseeing a high-profile corruption case that has reportedly implicated Justice de Moraes. *Valor International*, "Top Court Chief Takes Over Fake News Probe to Contain Crisis," September 10, 2026.

[126] Jack Nicas, "Is Brazil's Supreme Court Saving Democracy or Threatening It?" *New York Times*, August 28, 2025.

campaign, for example, the TSE regularly ordered online content to be deleted "at the request of both the Lula and Bolsonaro campaigns."[127] The TSE continued to regulate digital campaign content during the 2026 election campaign, setting new standards for AI deepfakes and ordering some anti-Lula and anti-(Flávio) Bolsonaro content to be removed, among other actions.[128] Justice de Moraes served as the president of the TSE during the 2022 election, and Justice Kassio Nunes Marques—a Bolsonaro appointee—presided over the TSE during the 2026 election.

Some U.S.-based social media companies have clashed with the STF over online content regulation. In February 2025, for example, Justice de Moraes ordered the suspension of the U.S.-based video-sharing platform *Rumble* in Brazil due to the company's refusal to comply with previous STF orders to suspend certain accounts, pay resulting fines, or appoint a legal representative in Brazil.[129] *Rumble* and the *Trump Media & Technology Group* (owner of *Truth Social*) sued Justice de Moraes in U.S. federal court, arguing he violated free speech protections of the U.S. Constitution's First Amendment by seeking to suspend the accounts of an individual who resides in the United States.[130] The individual in question is a pro-Bolsonaro media personality who is wanted in Brazil for defamation and other alleged crimes but who the U.S. government has reportedly declined to extradite.[131] A similar dispute with *X Corp.* (formerly *Twitter*) resulted in the STF suspending Brazilians' access to that social media platform for more than a month in 2024; *X Corp.* ultimately complied with the STF orders.[132]

Information regarding the full scope of court orders related to social media activity in Brazil is not publicly available. In a court filing, *X Corp.* reportedly stated that the company had blocked 223 accounts between 2020 and September 2024 in response to judicial orders in Brazil—158 in response to STF orders and 65 in response to TSE orders.[133] STF and TSE orders subpoenaed from *X Corp.* by the U.S. House Judiciary Committee during the 118th Congress indicated that the blocked accounts included some prominent figures associated with the ideological right in Brazil, including former President Bolsonaro; at least six federal legislators; and several journalists, political commentators, and social media influencers.[134] Additional documents obtained by the House Judiciary Committee during the 119th Congress indicate that some Brazilian judicial orders have sought to compel social media companies to prevent certain content or accounts from being

[127] Freedom House, *Freedom on the Net 2023: Brazil*, October 3, 2023.

[128] See, for example, Mauricio Savarese, "Brazil's Electoral Court Sets New Standards for AI Deepfakes After Case Involving Sen. Bolsonaro," Associated Press, September 2, 2026; Iolanda Fonseca, "TSE Overrules Nunes Marques and Orders Bolsonaro's Anti-Lula Video Removed," *Rio Times*, August 15, 2026; and Gabriel Andrade, "Mendonça Determina Remoção de Vídeo com IA que Liga Flávio Bolsonaro a Vorcaro," *Carta Capital*, August 20, 2026.

[129] STF, Petição 9.935 Distrito Federal, February 21, 2025. A panel of five STF justices upheld Justice de Moraes's order in March 2025.

[130] Rumble, "Rumble and TRUTH Social Sue Brazilian Judge Over Censorship Orders Targeting U.S. Users," February 19, 2025.

[131] STF, Petição 9.935 Distrito Federal, February 21, 2025; and "Interpol e EUA Contrariaram Moraes sobre Allan dos Santos," *Poder360*, March 23, 2025.

[132] Terrence McCoy and Marina Dias, "X is Back Online in Brazil, but It's Still a Defeat for Musk," *Washington Post*, October 9, 2024.

[133] Mateus Coutinho and Rafael Neves, "X Afirma Ter Derrubado Mais de 200 Contas por Ordem De STF e TSE desde 2020," *UOL*, October 9, 2024.

[134] U.S. Congress, House Committee on the Judiciary and the Select Subcommittee on the Weaponization of the Federal Government, *The Attack on Free Speech Abroad and the Biden Administration's Silence: The Case of Brazil*, Interim Staff Report, 118th Cong., 2nd sess., April 17, 2024.

viewed anywhere in the world and that some of those orders have targeted Brazilian nationals residing in the United States.[135]

The Biden Administration did not comment publicly on Brazil's regulation of digital communications. As noted above ("Bolsonaro Prosecution and 2026 Elections"), the Trump Administration condemned the STF's actions as censorship and imposed tariffs on imports from Brazil and sanctions on Justice de Moraes and other Brazilian justices and officials in 2025. In September 2026, the State Department reportedly obligated $1 million in foreign assistance appropriated for the Human Rights and Democracy Fund to support civil society groups countering purported "lawfare and censorship" in Brazil.[136]

Options for Congress

Congress may continue to monitor democracy and freedom of expression in Brazil, the extent to which Brazilian judicial orders affect entities and individuals in the United States, and the Trump Administration's approach to such issues, including the Administration's use of sanctions, tariffs, foreign assistance, and visas. In October 2025, the Senate approved a joint resolution to terminate the national emergency declared in EO 14323 related to Brazil's prosecution of former President Bolsonaro and regulation of social media (S.J.Res. 81). The House could consider that measure or a similar joint resolution introduced in the House (H.J.Res. 147). Some Members of Congress have sought additional information regarding the Trump Administration's use of sanctions in Brazil.[137] Others reportedly sought to prevent the Administration from moving forward with how it planned to use democracy assistance in Brazil.[138] Depending on Members' assessments of conditions in Brazil and the Trump Administration's actions, they could impose restrictions on the Administration's use of sanctions, foreign assistance, and other foreign policy tools or authorize the Administration to take specific actions in Brazil. Members also could engage directly with their Brazilian counterparts, who have been debating a variety of legislative measures related to political rights, freedom of expression, and the separation of powers in Brazil.

Trade and Investment Relations

At times, trade policy has been a contentious issue in U.S.-Brazilian relations. Since the early 1990s, Brazil's trade policy has prioritized integration with its South American neighbors through the Common Market of the South (*Mercosur*) and multilateral negotiations at the World Trade Organization (WTO).[139] Brazil is the industrial hub of Mercosur, which it established with Argentina, Paraguay, and Uruguay in 1991 with the stated goal of facilitating economic integration.[140] As a partial customs union, Mercosur facilitates mostly duty-free trade amongst its

[135] U.S. Congress, House Committee on the Judiciary, *The Attack on Free Speech Abroad: The Case of Brazil*, *Part III*, Interim Staff Report, 119th Cong., 2nd sess., April 1, 2026.

[136] Andrew Roth and Joseph Gedeon, "Trump Administration Diverts Human Rights Funds to Push Far-Right Agenda Abroad," *Guardian*, September 30, 2026. 22 U.S.C. § 2151n-2 states that the purposes of the Human Rights and Democracy Fund "shall be—(1) to support defenders of human rights; (2) to assist the victims of human rights violations; (3) to respond to human rights emergencies; (4) to promote and encourage the growth of democracy, including the support for nongovernmental organizations in foreign countries; and (5) to carry out such other related activities as are consistent with paragraphs (1) through (4)."

[137] Letter from Delia C. Ramirez, Member of Congress, et al. to Marco Rubio, Secretary of State, September 24, 2026.

[138] Roth and Gedeon, "Trump Administration Diverts Human Rights Funds to Push Far-Right Agenda Abroad."

[139] João Augusto de Castro Neves, *Brazil's Slow and Uncertain Shift from Protectionism to Free Trade*, Inter-American Dialogue, working paper, January 2014.

[140] Treaty Establishing a Common Market between the Argentine Republic, the Federal Republic of Brazil, the (continued...)

members and levies a common external tariff on imports from outside the bloc. Within the WTO, Brazil has joined with other developing countries to push the United States and other developed countries to reduce their agricultural tariffs and subsidies while resisting developed countries' calls for increased access to developing countries' industrial and services sectors. These policy differences were among the barriers to concluding the most recent round of multilateral trade negotiations (the WTO's Doha Round), as well as U.S. efforts in the 1990s and 2000s to establish a hemisphere-wide Free Trade Area of the Americas.[141]

A 2011 Agreement on Trade and Economic Cooperation (ATEC) has served as the primary formal mechanism for U.S.-Brazilian discussions of trade and investment issues. In October 2022, the U.S. and Brazilian governments concluded a Protocol on Trade Rules and Transparency, which added three annexes to the ATEC related to cooperation on trade facilitation and customs administration, regulatory practices, and anti-corruption measures.[142] Brazil's congress ratified the protocol in November 2021, and the agreement entered into force in February 2022. The U.S. Congress has not specifically authorized or approved the protocol, which did not include any provisions eliminating tariffs or nontariff barriers to trade that would have required changes to U.S. law.[143]

U.S. Tariffs

The second Trump Administration has imposed various tariffs on U.S. imports from Brazil. As noted previously ("Bolsonaro Prosecution and 2026 Elections"), in July 2025, President Trump declared a national emergency related to the criminal prosecution of former President Bolsonaro and the Brazilian judiciary's approach to regulating social media and invoked IEEPA to impose an additional 40% tariff on U.S. imports from Brazil, effective August 6, 2025.[144] This tariff, which reportedly exempted about half of Brazilian exports to the United States, was in addition to a minimum 10% IEEPA tariff that the President had imposed on most U.S. trade partners in April 2025.[145] The President modified the Brazil-specific IEEPA tariff in November 2025 to exempt additional products and lifted all IEEPA tariffs in February 2026 following a Supreme Court ruling that held IEEPA cannot be used to impose tariffs.[146]

Imports from Brazil are currently subject to U.S. tariffs imposed under other authorities. In June 2026, the Office of the U.S. Trade Representative (USTR) concluded two investigations under

Republic of Paraguay and the Eastern Republic of Uruguay, 1991. Mercosur admitted Venezuela as a full member in 2012 but suspended the country in 2017 due to Venezuela's failure to adhere to the bloc's democratic norms. Bolivia joined Mercosur as a full member in 2024 but has a four-year period to comply with Mercosur's regulations.

[141] For additional background on these issues, see CRS Report R46619, *U.S.-Brazil Economic Relations*, coordinated by M. Angeles Villarreal.

[142] The text of the protocol is available at https://ustr.gov/sites/default/files/files/Press/Releases/ATECProtocolUSBREnglish.pdf.

[143] For analysis of congressional and executive authorities related to foreign trade agreements, see CRS Report R47679, *Congressional and Executive Authority Over Foreign Trade Agreements*, by Christopher T. Zirpoli.

[144] EO 14323 of July 30, 2025, "Addressing Threats to the United States by the Government of Brazil."

[145] EO 14257 of April 2, 2025, "Regulating Imports with a Reciprocal Tariff to Rectify Trade Practices That Contribute to Large and Persistent Annual United States Goods Trade Deficits," 90 *Federal Register 15041*, April 7, 2025; EIU, "Trump Exempts Nearly Half of Brazilian Exports from Tariffs," August 1, 2025.

[146] EO 14361 of November 20, 2025, "Modifying the Scope of Tariffs on the Government of Brazil," 90 *Federal Register* 54467, November 26, 2025; EO 14389 of February 20, 2026, "Ending Certain Tariff Actions," 91 *Federal Register* 9437, February 25, 2026. For more on the court ruling, see CRS Legal Sidebar LSB11398, *Supreme Court Rules Against Tariffs Imposed Under the International Emergency Economic Powers Act (IEEPA)*, by Christopher T. Zirpoli.

Section 301 of the Trade Act of 1974 (19 U.S.C. §§2411-2420).[147] In one of those investigations, USTR determined that "Brazil's acts, policies, and practices related to digital trade and electronic payment services; unfair, preferential tariffs; anti-corruption enforcement; intellectual property protection; ethanol market access; and illegal deforestation are unreasonable or discriminatory and burden or restrict U.S. commerce," and imposed a 25% tariff on Brazilian goods, effective July 22, 2026.[148] In the second investigation, USTR found that Brazil (and 59 other economies) "failed to impose a forced labor import prohibition and to effectively enforce such a prohibition," and imposed a 12.5% tariff on imports from Brazil, effective July 24, 2026.[149] Some imports from Brazil, such as steel, are subject to other tariffs under Section 232 of the Trade Expansion Act of 1962 (19 U.S.C. §1862, as amended).[150]

Some imports from Brazil, including certain types of beef, orange juice, aircraft, and energy products, are exempted from U.S. tariffs.[151] The Brazilian government calculated how the Trump Administration's tariffs had affected the mix of products that Brazil had exported to the United States in 2024 (prior to the tariff actions). As of July 2026, about 53% of Brazilian products (by value) were not affected by Section 301 or Section 232 tariffs. Nearly 17% of Brazilian products were subject to both Section 301 tariffs (combined tariff rate of 37.5%), 5% of Brazilian products were subject only to the forced labor Section 301 tariff (12.5% tariff rate), and 2% of Brazilian products were subject only to the Brazil-specific Section 301 tariff (25% tariff rate). Roughly 24% of Brazilian products exported to the United States were subject to Section 232 tariffs.[152]

The Brazilian government repeatedly has rejected U.S. tariff actions, characterizing them as politically motivated attacks on Brazilian sovereignty.[153] Lula administration officials have asserted that Brazil remains open to trade negotiations with the United States but "will not be intimidated" by "threats and false allegations."[154] The Brazilian government also has requested dispute consultations at the World Trade Organization and considered—but not yet taken—retaliatory trade measures against the United States; Brazil's Economic Reciprocity Law authorizes Brazil's executive branch to impose tariffs and suspend intellectual property rights

[147] For more information on Section 301, see CRS In Focus IF11346, *Section 301 of the Trade Act of 1974*, by Danielle M. Trachtenberg.

[148] USTR, "Notice of Determination and Request for Comments Concerning Action Pursuant to Section 301: Brazil's Acts, Policies, and Practices Related to Digital Trade and Electronic Payment Services; Unfair, Preferential Tariffs; Anti-Corruption Enforcement; Intellectual Property Protection; Ethanol Market Access; and Illegal Deforestation," 91 *Federal Register* 33854, June 4, 2026; and USTR, "Notice of Action: Brazil's Acts, Policies, and Practices Related to Digital Trade and Electronic Payment Services; Unfair, Preferential Tariffs; Anti-Corruption Enforcement; Intellectual Property Protection; Ethanol Market Access; and Illegal Deforestation," 91 *Federal Register*, 45516, July 20, 2026.

[149] USTR, "Notice of Determination and Request for Comments Concerning Actions in Section 301 Investigations of Acts, Policies, and Practices of Various Economies Related to the Failure to Impose and Effectively Enforce a Prohibition on the Importation of Goods Produced with Forced Labor," 91 *Federal Register* 34272, June 5, 2026; and USTR, "Notice of Actions in Section 301 Investigations of Acts, Policies, and Practices of Various Economies Related to the Failure of Each Economy To Impose and Effectively Enforce a Prohibition on the Importation of Goods Produced With Forced Labor," 91 *Federal Register* 47318, July 28, 2026.

[150] For more information on Section 232, see CRS In Focus IF13006, *Section 232 of the Trade Expansion Act of 1962* and CRS Insight IN12519, *Section 232 Tariffs on Steel and Aluminum*, by Kyla H. Kitamura.

[151] See Annex II of USTR, "Notice of Action: Brazil's Acts, Policies, and Practices Related to Digital Trade and Electronic Payment Services; Unfair, Preferential Tariffs; Anti-Corruption Enforcement; Intellectual Property Protection; Ethanol Market Access; and Illegal Deforestation" and "Notice of Actions in Section 301 Investigations of Acts, Policies, and Practices of Various Economies Related to the Failure of Each Economy To Impose and Effectively Enforce a Prohibition on the Importation of Goods Produced With Forced Labor."

[152] MDIC, "Alcance das Medidas Tarifárias dos Estados Unidos sobre Exportações Brasileiras," July 24, 2026.

[153] See, for example, Presidência da República, "Pronunciamento do Presidente Lula: Brasil Soberano," July 17, 2025; and Vieira, "Your Excellencies, the Facts Regarding the Tariff Crisis."

[154] Vieira, "Your Excellencies, the Facts Regarding the Tariff Crisis."

obligations, among other retaliatory measures.[155] Additionally, Brazil has sought to diversify its trade relations, including by concluding a free trade agreement between Mercosur and the European Union after more than 25 years of intermittent negotiations and advocating for trade negotiations with China.[156]

Trade and Investment Flows

The total value of U.S.-Brazilian trade in goods and services reached a record high of $134.9 billion in 2025, according to the U.S. Bureau of Economic Analysis (BEA). Compared with 2024, U.S. goods exports to Brazil increased by nearly 11% to $53.9 billion and U.S. goods imports from Brazil declined by about 7% to $39.5 billion, resulting in a $14.4 billion U.S. goods trade surplus.[157] According to U.S. Census Bureau data, the top U.S. goods imports from Brazil in 2025 included mineral fuels (primarily crude oil), iron and steel, coffee, machinery, and aircraft and parts. Top U.S. goods exports to Brazil included mineral fuels (primarily refined products), aircraft and parts, machinery, and pharmaceutical products.[158]

According to the BEA, the United States also ran a $27.4 billion surplus in services trade with Brazil in 2025, as U.S. exports were valued at $34.4 billion and U.S. imports were valued at $7.0 billion.[159] Travel and charges for the use of U.S. intellectual property were the top categories of U.S. services exports to Brazil. Professional and management consulting services, travel, and transport were the top categories of U.S. services imports from Brazil.

According to the U.S. Department of State, the Lula administration has sought to attract foreign direct investment (FDI) in certain sectors, including defense, digital connectivity, education, health, sustainable cities, transportation, and water management.[160] The Department of State notes that Brazil imposes restrictions on FDI in other sectors, including aerospace, health care, insurance, maritime, mass media, rural property, and telecommunications. The United States is the largest source of FDI in Brazil. As of 2025, the accumulated stock of U.S. FDI in Brazil was $90.2 billion, with significant investments in manufacturing ($25.2 billion), finance ($15.8 billion), and mining ($15.7 billion), among other sectors.[161] The same year, the stock of Brazilian FDI in the United States totaled $5.5 billion.[162]

[155] World Trade Organization, "Dispute Settlement, DS640: United States—Tariff Measures on Goods from Brazil," https://www.wto.org/english/tratop_e/dispu_e/cases_e/ds640_e.htm; and "Lei Nº 15.122, De 11 De Abril De 2025," *Diário Oficial da Uniáo*, April 14, 2025.

[156] Governo do Brasil, Presidência da República, "Lula, on the Approval of the European Union-MERCOSUR Agreement: 'A Historical Day for Multilateralism'," January 10, 2026; and Julia Amoêdo, "Lula Diz que Mercosul Quer Acordo com China," *Poder360*, June 30, 2026.

[157] U.S. Bureau of Economic Analysis (BEA), "Brazil—International Trade and Investment Country Facts: Trade," last published June 24, 2026.

[158] Product descriptions based on two-digit HTS codes. U.S. Census Bureau and MDIC data, as reported by *Trade Data Monitor*, accessed July 13, 2026.

[159] BEA, "Table 2.3. U.S. Trade in Services, by Country or Affiliation and by Type of Service," July 7, 2026.

[160] U.S. Department of State, *2026 Investment Climate Statements: Brazil*, September 29, 2026.

[161] BEA, "Brazil—International Trade and Investment Country Facts: Direct Investment," last published July 21, 2026.

[162] BEA, "Brazil—International Trade and Investment Country Facts: Direct Investment."

Critical Minerals

The U.S. and Brazilian governments and some private sector entities have identified critical minerals as a potential area for enhanced bilateral cooperation.[163] According to the U.S. Geological Survey, Brazil is among the top suppliers to the United States of 11 mineral commodities for which imports account for more than half of U.S. consumption, including three minerals determined to be essential to U.S. national security and the U.S. economy (niobium, used in steels and alloys; silicon, used in semiconductors; and tin, used in metallurgy).[164] Since 2020, the U.S. and Brazilian governments have engaged within a Critical Minerals Working Group, and U.S. agencies have supported some critical minerals projects in Brazil intended to contribute to the development of secure supply chains for the United States:[165]

- In 2020 and 2022, respectively, the U.S. International Development Finance Corporation (DFC) approved a $30 million loan and $25 million equity investment for Ireland-based TechMet Limited to operate and expand a nickel and cobalt mine in the Brazilian state of Piauí.
- In 2025, DFC approved $5 million in pre-investment project development financing for Aclara Resources Mineração Ltda, the Brazilian subsidiary of a Canadian-listed company, to study the feasibility of mining and processing rare earth elements in the Brazilian state of Goiás.
- In February 2026, DFC approved $565 million in debt financing for SVRE Holdings Ltd., a British Virgin Islands-based holding company, to improve the Pela Ema rare earth elements mine in Goiás.
- In August 2026, the U.S. Department of Defense (DOD) announced it had mobilized $1.55 billion in funding[166]—including a $750 million investment through DOD's Industrial Base Analysis and Sustainment program, a $300 million purchase commitment from the Defense Logistics Agency, and a $500 million commitment from a money-center bank—to support a rare earth element offtake agreement.[167] The funds supported U.S.-based USA Rare Earth's acquisition of SVRE Holdings Ltd and its Pela Ema mine in Goiás.[168]

[163] For more information on critical minerals, see CRS Report R47982, *Critical Mineral Resources: National Policy and Critical Minerals List*, by Linda R. Rowan.

[164] U.S. Department of the Interior, U.S. Geological Survey, *Mineral Commodity Summaries 2026*, March 2026, pp. 11-12.

[165] Unless otherwise noted, information in the following bullets is from U.S. International Development Finance Corporation (DFC), "Active Projects" database, accessed October 2, 2026. For more on the DFC, see CRS In Focus IF11436, *U.S. International Development Finance Corporation (DFC)*, by Shayerah I. Akhtar and Nick M. Brown.

[166] The Department of Defense (DOD) is "using a secondary Department of War designation," under Executive Order 14347 dated September 5, 2025.

[167] DOD, "Department of War Announces a $750 Million Investment as Part of a $1.55 Billion Initiative to Secure Critical Rare-Earth Elements From Serra Verde," August 24, 2026.

[168] USA Rare Earth, "USA Rare Earth (Nasdaq: USAR) Announces Completion of Upsized $1.55 Billion Capitalization of the U.S. Government-Backed Special Purpose Vehicle (SPV) for Serra Verde Offtake," August 24, 2026.

The Lula administration has sought increased FDI in the critical minerals sector but reportedly has been reluctant to enter into agreements that would grant exclusive purchasing rights to the United States (or other countries).[169] In September 2026, the Brazilian government enacted a new National Policy for Critical and Strategic Minerals.[170] Among other provisions, the legislation provides R$2 billion (about $383 million) for activities linked to critical mineral production and R$5 billion (about $957 million) in incentives to develop critical mineral processing in Brazil. The legislation also creates a National Council for the Industrialization of Critical and Strategic Minerals linked to the presidency to regulate the sector, including the power to approve mergers and acquisitions. It is unclear if Brazil's approach to the sector would allow for Brazil's participation in a potential "plurilateral agreement on trade in critical minerals and downstream products" that USTR aims to negotiate with "like-minded partners."[171]

Options for Congress

Congress has primary authority over U.S. trade policy through its constitutional power to levy tariffs and regulate foreign commerce, though it has delegated some of that authority to the executive branch.[172] Some Members of Congress have argued that the President has abused his trade authorities by imposing IEEPA and Section 301 tariffs to interfere in Brazil's justice system.[173] Some other Members have expressed support for the President's efforts to negotiate a new trade arrangement with Brazil while calling for more targeted tariffs.[174] Members could assess the trajectory of U.S.-Brazilian trade relations as well as the potential implications of the Trump Administration's trade policies. Such assessments could inform congressional decisions regarding potential measures to codify, terminate, or modify the Administration's tariffs on imports from Brazil. Congress also could set negotiating objectives for any trade discussions with the Brazilian government, including discussions related to critical minerals. Additionally, Congress could consider whether or not to reauthorize the Generalized System of Preferences (GSP) program, which provided nonreciprocal, duty-free tariff treatment to certain products imported from designated developing countries, prior to its expiration on December 31, 2020.[175] Brazil was the third-largest beneficiary of the program in 2020, with duty-free U.S. imports from Brazil valued at $2.2 billion.[176]

[169] Ana Ionova and Ju Faddul, "Brazil Hesitates as U.S. Pushes Rare Earths Partnership to Rely Less on China," *New York Times*, March 21, 2026.

[170] "Lei Nº 15.506, De 16 De Setembro De 2026," *Diário Oficial da Uniáo*, September 16, 2026.

[171] USTR, "Request for Comments on the Design of a Plurilateral Agreement on Trade in Critical Minerals and Policy Actions to Strengthen the Resilience of Critical Mineral Supply Chains," 91 *Federal Register* 9686, February 26, 2026.

[172] For more information on constitutional powers regarding trade, see CRS Report R47679, *Congressional and Executive Authority Over Foreign Trade Agreements*, by Christopher T. Zirpoli.

[173] See, for example, Letter from Tim Kaine, United States Senator, et al. to Honorable Donald J. Trump, President, July 24, 2025, https://www.kaine.senate.gov/imo/media/doc/brazil_trade_war_letter.pdf, and Representative Linda Sánchez, "Sánchez: Brazil 301 Investigation was Always Pretext for Tariffs," press release, July 16, 2026.

[174] See, for example, Senator Mike Crapo, "S.J. Res. 81," remarks in the Senate, *Congressional Record*, vol. 171, part 179 (October 28, 2025), p. S7777.

[175] For more on GSP, see CRS In Focus IF11232, *Generalized System of Preferences (GSP): FAQ*, by Liana Wong.

[176] U.S. Department of Commerce, Census Bureau data, as made available by the U.S. International Trade Commission, "Interactive Tariff and Trade DataWeb," accessed in April 2022.

Security Cooperation

Although U.S.-Brazilian security cooperation has been limited at times due to political disputes and policy differences, bilateral military and law enforcement ties grew closer between 2015 and 2024. During that period, the U.S. and Brazilian governments held regular high-level security discussions, the countries' armed forces participated in joint training and exercises, and U.S. and Brazilian law enforcement agencies cooperated on counternarcotics efforts, among other issues. The United States also provided some military and law enforcement aid to Brazilian security forces intended to strengthen their capacities and foster interoperability and collaboration. Some security cooperation appears to have continued during the second Trump Administration, despite differing approaches to some security challenges and tensions in the broader bilateral relationship.

Defense

The United States and Brazil are both parties to the Inter-American Treaty of Reciprocal Assistance, a collective security pact signed in 1947, but bilateral defense cooperation has varied over time.[177] During the 1970s, for example, Brazil withdrew from a series of military agreements with the United States in response to U.S. criticism on human rights issues and U.S. opposition to a Brazilian nuclear agreement with West Germany. The countries did not conclude a new umbrella Defense Cooperation Agreement until 2010. That same year, Brazil and the United States signed a General Security of Military Information Agreement intended to facilitate the sharing of classified information. The Brazilian congress did not approve either of those agreements until 2015, due in part to a cooling of relations after press reports revealed that the U.S. National Security Agency had engaged in extensive electronic surveillance in Brazil.[178] These defense agreements, negotiated as executive agreements, did not require U.S. congressional approval.[179]

As noted previously, in 2019, President Trump designated Brazil as a major non-NATO ally for the purposes of the Foreign Assistance Act of 1961, as amended (22 U.S.C. §§2151 et seq.), and the Arms Export Control Act (22 U.S.C. §§2751 et seq.).[180] That designation made Brazil eligible for privileged access to the U.S. defense industry and increased joint military exchanges, exercises, and training, among other benefits. According to the U.S. Embassy in Brazil, a 2020 Research, Development, Test, and Evaluation Agreement enabled bilateral collaboration on basic, exploratory, and advanced technologies at a "level enjoyed only by NATO allies and the closest strategic security partners of the United States."[181]

Some defense cooperation has continued during the second Trump Administration. U.S. and Brazilian forces have engaged in some multinational and bilateral military exercises and engagements, although press reports suggest a few planned events may have been canceled amid

[177] Notably, the countries forged close defense relations during World War II, when Brazil was the only Latin American country to deploy forces to Europe and the 25,000-strong Brazilian Expeditionary Force fought as a division within the United States Fifth Army in Italy.

[178] "Brazil President Postpones US Visit over Spying," *Voice of America*, September 17, 2013.

[179] For more information on executive agreements, see CRS Legal Sidebar LSB11048, *International Agreements (Part I): Overview and Agreement-Making Process*, by Steve P. Mulligan.

[180] Presidential Determination No. 2019-21 of July 31, 2019, "Designation of the Federative Republic of Brazil as a Major Non-NATO Ally," 84 *Federal Register* 43035, August 19, 2019.

[181] U.S. Embassy & Consulates in Brazil, "Trade & Investment," fact sheet, February 10, 2023.

bilateral tensions.[182] Brazil has continued to purchase some U.S. military equipment. In June 2026, for example, the State Department informed Congress that it had approved a potential Foreign Military Sale to the Brazilian government of Stinger missiles and related equipment valued at $330 million.[183] The United States also has provided some military assistance to Brazil. In FY2025, the State Department obligated $1 million in International Military Education and Training aid to support Brazilian military officer training at U.S. professional military education institutions.[184]

Counternarcotics and Law Enforcement

Brazil is not among the countries that President Trump designated as major producers or transit points for illicit drugs that significantly affect the United States for FY2027.[185] Brazil is the world's second-largest consumer of cocaine (after the United States), however, and serves as a transit point for some illicit drugs destined for Africa, Europe, and the United States, according to the U.S. State Department.[186] Several large, well-organized, and heavily armed criminal groups in Brazil—such as the First Capital Command (*Primeiro Comando da Capital*, or PCC) and the Red Command (*Comando Vermelho*, or CV)—have a transnational reach. Some analysts assess that violence in Brazil is closely correlated with battles among the PCC, CV, and their allies over drug trafficking routes.[187] These groups are also reportedly involved in various other illicit activities, including arms trafficking and illegal mining in the Amazon.[188]

U.S. and Brazilian authorities have worked together to combat drug trafficking and other organized crime. In April 2026, for example, Brazil's Federal Revenue Service and U.S. Customs and Border Protection created a new Mutual Interdiction Team to identify and intercept illicit arms and drug shipments between the two countries. A digital platform allows U.S. and Brazilian authorities to share information in real time, identify patterns, and map illicit networks.[189] Such intelligence sharing reportedly has contributed to multiple arms and drug seizures, including a June 2026 joint operation involving the Brazilian Federal Police, the U.S. Drug Enforcement Administration, and Bolivian authorities that seized 50 tons of cocaine.[190]

Nevertheless, the U.S. and Brazilian governments have disagreed at times on some counternarcotics matters. In June 2026, the Trump Administration designated the PCC and CV as

[182] U.S. Naval Forces Southern Command/U.S. 4th Fleet Public Affairs, "UNITAS 2025 Kicks Off at Naval Station Mayport," U.S. Southern Command, September 15, 2025; Lt. Cmdr. Peter Pagano, "Brazilian and U.S. Navies Conduct Bilateral Maritime Engagement in Atlantic Ocean," U.S. Southern Command, May 15, 2026; "EUA Cancelam Evento Militar com Brasil e Acendem Alerta na Defesa," *Folha de São Paulo*, August 20, 2025.

[183] U.S. Department of State, "Brazil – FIM-92K Stinger Missiles," Congressional Notification, June 11, 2026.

[184] U.S. Department of State, ForeignAssistance.gov, U.S. foreign assistance database, accessed September 14, 2026.

[185] Presidential Determination No. 2026-23 of September 11, 2026, "Presidential Determination on Major Drug Transit or Major Illicit Drug Producing Countries for Fiscal Year 2027," 91 *Federal Register* 59687, September 18, 2026.

[186] U.S. Department of State, Bureau for International Narcotics and Law Enforcement Affairs, *International Narcotics Control Strategy Report, Volume I: Drug and Chemical Control*, March 2025, p. 148.

[187] Marina Cavalari, "What a Decade of Data Tells Us About Organized Crime in Brazil," InSight Crime, July 1, 2024.

[188] See, for example, Ryan C. Berg, *Tussle for the Amazon: New Frontiers in Brazil's Organized Crime Landscape*, Florida International University, Jack D. Gordon Institute for Public Policy, October 2021.

[189] Nelza Oliveira, "Brazil, US Strengthen Fight Against Transnational Crime Through Intelligence Sharing," *Diálogo Américas* (U.S. Southern Command publication), September 28, 2026.

[190] Oliveira, "Brazil, US Strengthen Fight Against Transnational Crime Through Intelligence Sharing"; and "Brazil, U.S. Agencies Seize 50 Tonnes of Cocaine in Joint Operation," *Valor International*, June 22, 2026.

foreign terrorist organizations (FTOs) and specially designated global terrorists (SDGTs).[191] Consequences of these designations include restrictions on entry into the United States, asset-blocking sanctions, and secondary sanctions risks for foreign financial institutions that knowingly facilitate transactions on behalf of sanctioned persons.[192] The Lula administration opposed the FTO and SDGT designations and expressed concern that they could undermine Brazil's sovereignty and economy and pave the way for unilateral U.S. military strikes on Brazilian territory.[193] Then-opposition presidential candidate Flávio Bolsonaro, who met with President Trump at the White House two days prior to the U.S. announcement, reportedly celebrated and claimed credit for the decision.[194] The Trump Administration maintains that the Brazilian government has "failed to confront" the PCC and CV, and that the organizations are "a growing threat to peace and security around the world."[195]

Strains in the broader U.S.-Brazil relationship reportedly have interrupted some other law enforcement cooperation. In April 2026, the State Department expelled a Brazilian Federal Police liaison from the United States for allegedly seeking to "circumvent formal extradition requests" and "extend political witch hunts into U.S. territory."[196] The Brazilian officer reportedly had been involved in U.S. Immigration and Customs Enforcement's (ICE's) detention of Alexandre Ramagem, who is seeking asylum in the United States after being sentenced to 16 years in prison in Brazil for his involvement in Bolsonaro's attempted coup while serving as the head of Brazil's intelligence agency. Brazil has requested Ramagem's extradition; ICE reportedly released him two days after his detention.[197] Brazil responded to the expulsion by revoking the credentials of a U.S. law enforcement officer in Brasília. As of September 2026, the successors of the expelled Brazilian and U.S. officers reportedly had been unable to take up their posts due to the State Department withholding visas and the Brazilian government responding in kind.[198]

Options for Congress

Congress oversees bilateral security ties and authorizes and appropriates funding for security cooperation programs. Among other actions, Members could assess the current state of U.S.-Brazilian security relations, including the extent to which strains in the broader U.S.-Brazil relationship have affected cooperation on defense and law enforcement matters. During the FY2027 appropriations process, Congress could consider whether to appropriate military and/or law enforcement assistance specifically for Brazil or to leave such allocation decisions to the

[191] U.S. Department of State, "Specially Designated Global Terrorist Designations of Primeiro Comando da Capital and Comando Vermelho," 91 *Federal Register* 34266, June 5, 2026; and U.S. Department of State, "Foreign Terrorist Organization Designation of Primeiro Comando da Capital and Comando Vermelho," 91 *Federal Register* 34267, June 5, 2026.

[192] For more information, see CRS Insight IN11205, *Designating Cartels and Other Criminal Organizations as Foreign Terrorists: Recent Developments*; and CRS In Focus IF10613, *The Foreign Terrorist Organization (FTO) List*. The PCC has been subject to U.S. asset-blocking sanctions since 2021, pursuant to Executive Order 14059, "Imposing Sanctions on Foreign Persons Involved in the Global Illicit Drug Trade."

[193] President Lula, (@LulaOficial), "Nota do Governo do Brasil," X post, May 29, 2026, https://x.com/LulaOficial/status/2060399640361513163; and Communication from Mauro Vieira, Ministro de Estado das Relações Exteriores to Deputado Carlos Veras, Primeiro-Secretário da Mesa Directora da Câmara dos Deputados, Oficio Nº81, July 1, 2026.

[194] "Flávio Bolsonaro Claims Credit for U.S. Gang Move," *Valor International*, May 29, 2026.

[195] Presidential Determination No. 2026-23 of September 11, 2026.

[196] U.S. Bureau of Western Hemisphere Affairs (@WHAAsstSecty), X post, April 20, 2026, https://x.com/WHAAsstSecty/status/2046337690178854957.

[197] Agence-France Presse, "Lula Warns Will Respond After US Expels Police Attache," April 21, 2026.

[198] Ana Ionova and Edward Wong, "A Visa Dispute is Threatening a U.S.-Brazil Effort to Fight Crime," *New York Times*, September 12, 2026.

Trump Administration. The National Security, Department of State, and Related Programs (NSRP) Appropriations Act, 2027 (H.R. 8595/H.Rept. 119-631), as passed by the House in July 2026, would not designate any security assistance specifically for Brazil. However, the bill would designate $20 million in International Narcotics Control and Law Enforcement aid for the Southern Cone Cooperation Program, which historically has included Brazil. The Senate Appropriations Committee has yet to mark up an FY2027 NSRP appropriations bill.

Environmental Cooperation

In 2023 and 2024, Presidents Biden and Lula placed environmental cooperation at the center of the U.S.-Brazil relationship. In addition to increasing diplomatic engagement on such issues, the Biden Administration sought to increase U.S. financial support for conservation in the Brazilian Amazon. In 2023, President Biden announced his intention to seek $500 million from Congress over five years for Brazil's Amazon Fund.[199] The Biden Administration asserted that such funding was "a top priority for—and consistent ask from—the Brazilian government" and "central to strengthening the U.S. partnership with Brazil."[200] The Biden Administration ultimately delivered $53.5 million to Brazil for the Amazon Fund between December 2023 and October 2024.[201]

Congress has designated some funding for U.S.-managed foreign assistance programs in the Brazilian Amazon in annual appropriations legislation but has not directed any funding to the Amazon Fund specifically. For example, the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2024 (P.L. 118-47, Division F) designated $23.75 million for environment programs in the Brazilian Amazon.[202] The Full-Year Continuing Appropriations and Extensions Act, 2025 (P.L. 119-4) funded U.S. foreign assistance programs in Brazil at the same level, and under the same conditions and authority, as FY2024. The FY2026 NSRP Appropriations Act (P.L. 119-75, Division F) designated $38.0 million for programs across the Amazon region.[203]

The Trump Administration's foreign assistance policies have affected the implementation of these funds. The Administration dismantled the U.S. Agency for International Development (USAID), which had been the lead U.S. agency responsible for managing environmental assistance programs in Brazil.[204] The Administration also terminated nearly all USAID- and U.S. Forest Service-managed environmental programs in Brazil.[205] Such programs generally provided support to Brazilian government institutions, nongovernmental organizations, and/or communities—

[199] White House (Biden Administration), "Chair's Summary of the Major Economies Forum on Energy and Climate Held by President Joe Biden," April 21, 2023.

[200] U.S. Department of State, *Congressional Budget Justification, Foreign Operations, Appendix 2, Fiscal Year 2025*, April 2024, p. 313.

[201] Amazon Fund, "Donations," accessed May 28, 2025, https://www.amazonfund.gov.br/en/transparency/donations/.

[202] P.L. 118-47, §7019(a); and U.S. Congress, House Appropriations Committee, *Further Consolidated Appropriations Act, 2024*, committee print, H.R. 2882/P.L. 118-47 (Legislative Text and Explanatory Statement), Book 2, Divisions A-F, 118th Cong., 2nd sess. (Washington: GPO, 2024), p. 1199.

[203] In prior years, appropriations acts typically designated separate funding levels for the Brazilian Amazon and the Andean Amazon. P.L. 119-75, §7019(a); and Explanatory Statement Submitted by Mr. Cole, Chair of the House Committee on Appropriations, Regarding H.R. 7006, Financial Services and General Government and National Security, Department of State, and Related Programs Appropriations Act, 2026, *Congressional Record*, vol. 172, no. 10 (January 14, 2026), p. H869.

[204] For more on USAID, see CRS In Focus IF10261, *U.S. Agency for International Development: An Overview*, by Emily M. McCabe.

[205] CRS communication with the U.S. Agency for International Development (USAID), May 2025; and CRS analysis of U.S. government foreign assistance data in the ForeignAssistance.gov and USASpending.gov databases, accessed September 2026.

including Indigenous peoples and *Quilombolas*—with the stated purpose of strengthening protected area management and promoting sustainable economic activities, among other objectives.[206] It is unclear if the Trump Administration intends to issue any new awards for conservation efforts in Brazil.

The status of other U.S. agencies' engagement with Brazil on environmental matters is uncertain. NASA historically has provided some data and technical support to Brazil to help the country better monitor Amazon deforestation. At least some of that support, which had been facilitated by USAID, has ended.[207] Other agencies, such as the U.S. Fish and Wildlife Service, have assisted Brazil in law enforcement to combat wildlife trafficking, illegal logging, and other conservation crimes. As of 2026, the U.S. State Department continued to identify Brazil as a "focus country" for anti-wildlife trafficking efforts, pursuant to the Eliminate, Neutralize, and Disrupt (END) Wildlife Trafficking Act of 2016, as amended (P.L. 114-231; 16 U.S.C. §§7601-7644).[208]

Options for Congress

Congress may examine U.S.-Brazilian cooperation on environmental matters and whether and, if so, how to influence the trajectory of such cooperation. During the FY2027 appropriations process, Congress may assess whether to designate funding for environmental programs in the Brazilian Amazon; the Trump Administration did not request any such funding. The FY2027 NSRP appropriations bill (H.R. 8595/H.Rept. 119-631), as passed by the House in July 2026, would not specifically designate any funds for the Brazilian Amazon. The bill would provide "not less than" $274.3 million for biodiversity conservation programs worldwide, as well as $100 million for the United States Foundation for Natural Security and Counterterrorism, a nonprofit corporation that is to provide grants to support protected areas in countries with "a high degree of biodiversity or species and ecosystems of significant ecological value."[209] The Senate Appropriations Committee has yet to mark up a FY2027 NSRP appropriations bill. Congress also could consider other legislative measures, such as the Strengthening the Rule of Law in the Brazilian Amazon Act (S. 2578), reported by the Senate Committee on Foreign Relations in July 2026, which aims to strengthen U.S.-Brazilian cooperation in combatting environmental crimes and support sustainable economic opportunities in the Amazon region.

[206] For more information on previous U.S. assistance activities in Brazil, see USAID, "Brazil: Bilateral Biodiversity Conservation," January 17, 2025, https://web.archive.org/web/20250117030251/https://www.usaid.gov/brazil/our-work/environmental-partnerships; and U.S. Forest Service, "Latin America Caribbean, and Canada Program," https://www.fs.usda.gov/about-agency/international-programs/where-we-work/latin-america-caribbean-canada.

[207] See, for example, SERVIR, "Our History," https://www.servirglobal.net/history/.

[208] A focus country is considered a major source of wildlife trafficking products or their derivatives, a major transit point of wildlife trafficking products or their derivatives, or a major consumer of wildlife trafficking products. U.S. Department of State, Bureau of Oceans and International Environmental and Scientific Affairs, *Report to Congress on Major Wildlife Trafficking Countries, 16 USC 7621*, June 1, 2026.

[209] The United States Foundation for International Conservation Act of 2024 (Title LI, Subtitle A of P.L. 118-159) directed the Secretary of State to establish the United States Foundation for International Conservation as an independent, nonprofit corporation. The legislation authorized appropriations of "not more than" $100 million for the foundation for each fiscal year between FY2026 and FY2034. Section 7034(k) of P.L. 119-75 renamed the foundation as the U.S. Foundation for Natural Security and Counterterrorism.

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